

# Southend-on-Sea Corporation Act, 1960

8 & 9 ELIZ. 2 Ch. xliv

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## CHAPTER xliv

An Act to confer further powers upon the mayor aldermen and burgesses of the borough of Southend-on-Sea to make further provision for the improvement health local government and finances of the borough and for other purposes. [29th July 1960.]

### WHEREAS—

(1) The borough of Southend-on-Sea (in this Act called “the borough”) is a county borough under the government of the mayor aldermen and burgesses of the borough (in this Act called “the Corporation”):

(2) It is expedient to make further provision with reference to streets and the improvement health local government and finances of the borough:

(3) It is expedient that the other provisions contained in this Act be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I  
PRELIMINARY

Short and  
collective  
titles.

1.—(1) This Act may be cited as the Southend-on-Sea Corporation Act 1960.

(2) The Southend-on-Sea Corporation Acts 1875 to 1947 and this Act may be cited jointly as the Southend-on-Sea Corporation Acts 1875 to 1960.

Division of  
Act into  
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Streets.

Part III.—Sanitation and buildings.

Part IV.—Nuisances.

Part V.—Public order and public safety.

Part VI.—Parks cemeteries and other municipal property.

Part VII.—Cultural activities.

Part VIII.—Premises used for sales by auction.

Part IX.—Finance.

Part X.—Miscellaneous.

Part XI.—General.

Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“the Act of 1933” means the Local Government Act 1933 ;

“the Act of 1936” means the Public Health Act 1936;

“the Act of 1947” means the Town and Country Planning Act 1947 ;

“the Act of 1959” means the Highways Act 1959;

“the appointed day” has the meaning assigned to it by section 88 (The appointed day) of this Act;

“the borough” means the county borough of Southend-on-Sea;

“the commission” means the British Transport Commission;

“contravention” includes a failure to comply and  
“contravene” shall be construed accordingly;



“ the Corporation ” means the mayor aldermen and burgesses of the borough;

“ the council ” means the council of the borough;

“ daily fine ” means a fine for each day on which an offence is continued after conviction;

“ enactment ” includes an enactment in this Act or in any general or local Act and any order byelaw scheme or regulation for the time being in force within the borough;

“ financial year ” means a period of twelve months ending on the thirty-first day of March;

“ the general rate fund ” means the general rate fund of the borough;

“ magistrates’ court ” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act 1952;

“ the Minister ” means the Minister of Housing and Local Government;

“ open space ” has the same meaning as in the Open Spaces Act 1906;

“ street works ” has the meaning assigned to that expression by section 213 of the Act of 1959;

“ public service vehicle ” has the meaning assigned to that expression by the Road Traffic Act 1960;

“ statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

“ the town clerk ” “ the medical officer ” “ the surveyor ” and “ the treasurer ” mean respectively the town clerk the medical officer of health the surveyor and the treasurer of the borough.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

## PART II

### STREETS

4.—(1) In this Part of this Act the expression “ structure ” Interpretation means a wall fence hoarding or similar erection but for the of this Part purpose of this definition the expression “ wall ” does not include of Act. a wall forming part of a permanent building.

PART II  
—cont.

(2) For the purposes of this Part of this Act the erection of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof (whichever is the earlier) began.

Trees grass  
verges and  
gardens.

5.—(1) Subject to the provisions of this section the Corporation shall have power in any street vested in them or on any land acquired by them for the purpose of the construction or improvement of any such street or for preventing the erection of buildings detrimental to the view from the street—

- (a) to plant trees or shrubs or place tubs in which to grow trees or shrubs;
- (b) to attach baskets for plants to posts or standards provided by the Corporation or with the consent of the owner thereof to any other posts or standards;
- (c) to lay out grass verges or gardens;
- (d) to provide guards or fences and otherwise do anything expedient for the maintenance or protection of such trees shrubs tubs baskets grass verges or gardens;
- (e) to cut down any such tree or shrub to remove any such tub or basket and to abolish any such grass verge or garden or enlarge or diminish the area thereof;
- (f) by notice to prohibit persons from entering upon or causing or permitting horses cattle or vehicles to enter upon any grass verge which is laid out under the powers of this section and is maintained in an ornamental condition or mown or any garden which is laid out under those powers.

(2) Any such notice as is referred to in paragraph (f) of the foregoing subsection shall be conspicuously posted on or in proximity to the grass verge or garden to which it relates and if any person contravenes a notice so posted he shall be liable to a fine not exceeding five pounds.

(3) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(4) Section 82 of the Act of 1959 shall cease to apply to highways vested in the Corporation or to any such land as is referred to in subsection (1) of this section and anything done by the Corporation under that section or under section 1 of the Roads Improvement Act 1925 with respect to such highways or land before the passing of this Act shall be deemed to have been done under this section.



(5) Nothing in this section shall affect the duty of the Corporation to provide a footway or grass or other margins under section 67 or section 70 of the Act of 1959.

(6) Where the Corporation carry out works under any enactment relating to private street works they may with the consent of the owners of premises fronting adjoining or abutting on the part of the street in which the works are carried out exercise the powers conferred by this section in that part and the expenses incurred in so doing shall be deemed part of the expenses of carrying out the works.

The reference in this subsection to the consent of the owners of premises is a reference to the consent of the majority of them where the rateable value of the premises owned by the persons consenting is greater than the rateable value of the rest of the said premises.

6.—(1) Where in pursuance of the Housing Act 1957 any grass verge garden or space is provided by the Corporation and maintained in an ornamental condition or mown by them they may by notice prohibit any person from—

- (a) causing or permitting vehicles or horses to enter upon any such grass verge garden or space; or
- (b) entering upon any such garden.

(2) Any such notice as is referred to in the foregoing subsection shall be conspicuously posted on or in proximity to the grass verge garden or space to which it relates and any person who contravenes a notice so posted shall be liable to a fine not exceeding five pounds.

(3) The powers of this section shall not be exercisable in relation to any grass verge garden or space which forms part of a highway maintainable at the public expense.

7.—(1) The Corporation may provide and maintain pillars rails or fences under subsection (2) of section 67 of the Act of 1959 in any street in the borough notwithstanding that the street is not a highway maintainable by the Corporation at the public expense.

Guard rails  
in private  
streets.

(2) The Corporation shall not without the consent of the undertakers concerned exercise the powers of this section—

- (a) in a street belonging to or repairable by any transport undertakers and forming the approach to a station or depot of those undertakers; or

PART II  
—cont.

(b) so as to obstruct or interfere with the access to or exit from a station or depot of any transport undertakers:

Provided that such consent shall not be unreasonably withheld and any question whether it is unreasonably withheld shall be determined by the Minister of Transport.

(3) In this section the expression "transport undertakers" means any railway or passenger road transport undertakers.

Attachment  
of street  
lamps  
brackets etc.

8.—(1) Subject to the provisions of this section the Corporation may affix to any building in the borough such lamps brackets pipes electric lines and apparatus (hereafter in this section referred to as "attachments") as may be required for the purposes of street lighting.

(2) The Corporation shall not affix attachments to a building under this section without the consent of the owner of the building:

Provided that where in the opinion of the Corporation any consent required under this subsection is unreasonably withheld they may apply to the appropriate authority who may either allow the attachments subject to such conditions (if any) as to rent or otherwise as the authority thinks fit or disallow the attachments.

(3) Where any attachments have been affixed to a building under this section and the person who gave the consent or who was the owner of the building when the attachments were allowed by the appropriate authority ceases to be the owner thereof the subsequent owner may give to the Corporation notice requiring them to remove the attachments and subject to the provisions of this subsection the Corporation shall comply with the requirement within three months after the service of the notice:

Provided that where in the opinion of the Corporation any such requirement is unreasonable they may apply to the appropriate authority who may either annul the notice subject to such conditions (if any) as to rent or otherwise as the authority thinks fit or confirm the notice subject to such extension (if any) of the said three months as the authority thinks fit.

(4) Where any attachments have been affixed to a building under this section the owner of the building may give the Corporation not less than fourteen days' notice requiring them at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building.

(5) If the owner of a building suffers damage by or in consequence of the affixing to the building of any attachments under the powers of this section he shall be entitled to be paid by the Corporation compensation to be determined in case of dispute



in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

PART II  
—cont.

(6) In this section—

“ appropriate authority ” means a magistrates’ court except that in relation to a building mentioned in the first column of the following table it means the Minister specified in relation thereto in the second column of that table:—

1

2

|                                                                                                                                                                                                                                                                                                                                                                                       |                            |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|
| Building forming part of an aerodrome licensed pursuant to an order made under the Civil Aviation Act 1949 or any enactment repealed by that Act.                                                                                                                                                                                                                                     | The Minister of Aviation.  |
| Building which—<br>(i) is subject to a building preservation order made under section 29 of the Act of 1947; or<br>(ii) is included in a list of buildings of special architectural or historic interest compiled or approved under section 30 of the last-mentioned Act; or<br>(iii) is alleged by the owner thereof to be a building of special architectural or historic interest. | The Minister.              |
| Building owned by a highway authority or railway undertakers.                                                                                                                                                                                                                                                                                                                         | The Minister of Transport. |
| Building owned by electricity or gas undertakers.                                                                                                                                                                                                                                                                                                                                     | The Minister of Power.     |
| Building owned by statutory water undertakers.                                                                                                                                                                                                                                                                                                                                        | The Minister.              |

“ building ” includes a structure and a bridge or aqueduct over a street;

“ owner ”—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remain unexpired and not forming part of such an aerodrome as aforesaid means the occupier of the building;

(b) in relation to a building forming part of such an aerodrome as aforesaid means the person having control of the aerodrome;

(c) in relation to any other building has the same meaning as in the Act of 1936;  
and the expression “ owned ” shall be construed accordingly.

PART II  
—cont.Application  
of building  
line to  
structures etc.

9.—(1) No person shall erect or bring forward beyond the building line on land abutting on a street in the borough any structure of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a fine not exceeding five pounds.

(3) The foregoing provisions of this section shall not apply to a temporary structure required to be erected for the purpose of the construction demolition alteration repair or maintenance of any building or works:

Provided that if any such temporary structure is not removed within seven days after the construction demolition alteration repair or maintenance of the building or works is completed the person who erected the structure shall be liable to a fine not exceeding five pounds.

(4) Where any person is convicted of an offence under any of the foregoing provisions of this section the court by which he was convicted may order him within such time as may be fixed by the order to remove the structure or if he so elects to set it back or alter it so that it no longer contravenes the provisions of subsection (1) of this section and if he fails to comply with the order—

- (a) he shall be liable to a fine not exceeding twenty shillings for each day on which the failure continues; and
- (b) the Corporation after giving him notice of their intention so to do may remove the structure and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a fine for any day after that on which the Corporation have given him notice of their intention to remove the structure.

(5) In this section—

- (a) the expression “building line” in relation to any land means—
  - (i) any building line prescribed by the Corporation in respect of the land under the provisions of any enactment; or
  - (ii) if there be no such line then any line beyond which a house or building may not be erected on the land without infringing a condition enforceable by the Corporation under subsection (2) of section 147 of the Housing Act 1957; or
  - (iii) if there be neither of such lines then the line beyond which a house or building may not (except



with the consent of the Corporation) be erected or brought forward on the land without contravening the provisions of section 75 of the Act of 1959;

(b) the expression “structure” includes—

(i) a structure of any kind in addition to the matters mentioned in section 4 (Interpretation of this Part of Act) of this Act; and

(ii) (without prejudice to the generality of the foregoing expression) any petrol pump notice board or show case;

not being a permanent building or an advertisement to which regulations made under section 31 of the Act of 1947 apply.

(6) The provisions of this section shall not apply to—

(a) any wall erected on land belonging to any railway undertakers so long as that land is used by those undertakers primarily for the purposes of their railway undertaking; or

(b) any structure erected on land belonging to the Central Electricity Generating Board the Eastern Electricity Board the North Thames Gas Board or the Southend Waterworks Company so long as that structure is used for the purpose of the supply of electricity gas or water as the case may be.

10.—(1) Where the forecourt of any premises abutting on a street in the borough or any steps or projection or goods (whether for sale or not) placed in such a forecourt is or are a source of danger obstruction or inconvenience to the public the Corporation may by notice require the owner or occupier of the premises to fence the forecourt from the street or to remove the goods placed thereon. Fencing of forecourts.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

11.—(1) Where any street works have been completed but the Corporation are unable to recover the amount due from the owner of any premises or otherwise under the Act of 1959 by reason of the fact that such owner is unknown and cannot after diligent inquiry made when the said amount became due and at reasonable intervals thereafter be found the Corporation may at any time after the expiration of twelve years from the date when the said amount became due apply to the county Recovery of private street works charges where owner unknown.

PART II  
—cont.

court and that court may on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with make an order vesting the said premises in the Corporation absolutely and thereupon the Corporation may appropriate the said premises subject to and in accordance with the provisions of section 163 of the Act of 1933 as if the said premises were land which was not required for the purpose for which it was acquired.

(2) Where the county court make an order under subsection (1) of this section the court shall nominate a surveyor for determining the value of the said premises and such surveyor shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof and the Corporation shall thereupon deposit a sum equal to the amount of such valuation after deduction of the amount of the final apportionment in respect of the said premises with interest thereon for a period of six years at the rate of five per centum per annum or at such other rate as may have been fixed by order of the Minister under subsection (5) of section 264 of the Act of 1959 together with all costs and expenses reasonably incurred by the Corporation.

(3) Any sum to be deposited under subsection (2) of this section shall be deposited in accordance with section 76 of the Lands Clauses Consolidation Act 1845 as if it was a sum awarded to be paid to an owner who cannot be found and as if the Corporation were the promoters of an undertaking and such sum shall be applied in accordance with section 78 of the said Act.

(4) The power conferred by subsection (1) of this section shall be exercisable by the Corporation in addition to any existing rights powers and remedies for the recovery of expenses and shall be exercisable by the Corporation in respect of all private street works whether completed before or after the passing of this Act.

Removal of  
trees etc.  
from streets.

12.—(1) Where any tree or structure or any part thereof falls on or across any street in the borough the Corporation may remove the same and recover the reasonable cost of so doing from the owner thereof or if such owner was not in beneficial occupation of the land upon which such tree or structure or any part thereof was situated from the occupier thereof:

Provided that the Corporation shall not exercise the powers of this section as respects any street belonging to the commission without the consent of the commission but that consent shall not be unreasonably withheld and any question whether it is unreasonably withheld shall be determined by the Minister of Transport.



(2) The provisions of section 276 of the Act of 1936 (relating to the sale of certain materials) as applied by this Act shall for the purposes of this section have effect as if the expression "materials" included timber.

PART II  
—cont.

13.—(1) No person shall mix mortar cement plaster or any like substance in any street in the borough maintainable at the public expense or in any street therein constructed under the powers in that behalf contained in the Act of 1947 the Southend-on-Sea Corporation Act 1947 the Housing Act 1957 the Act of 1959 or this Act or in any part of a private street being a part that drains into a gully drain or sewer maintainable at the public expense except upon such board or in such receptacle as will protect the street from such mortar cement plaster or substance and will prevent the same from being washed into any gully drain or sewer: Mixing of mortar etc. in streets.

Provided that this section shall not apply to the mixing in any street of any substance for the purposes of making up maintaining reinstating repairing altering or improving such street.

(2) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding forty shillings.

14.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall— Defacing of road surface etc.

(a) deface the surface of any street in the borough or any wall fence post or other structure or erection or any tree on or adjoining any such street by inscribing or painting thereon any letter sign device or other mark;

(b) remove obliterate deface or obscure any traffic sign erected or placed in the borough under the provisions of the Road Traffic Act 1960.

(2) The Corporation may themselves cleanse and reinstate the surface of any street wall fence post or other structure or erection or any tree which has been defaced contrary to the provisions of subsection (1) of this section or any such traffic sign which has been so removed obliterated defaced or obscured and may remove any such letter sign device or other mark as is referred to in that subsection.

(3) If any person contravenes any of the foregoing provisions of this section he shall be liable to a fine not exceeding two pounds and the court by which he is convicted may whether or not it imposes a fine in addition by order require him to pay to the Corporation any expenses incurred by them under subsection (2) of this section.

PART II  
—cont.

Power to  
close  
promenades  
for certain  
purposes.

15.—(1) The Corporation may from time to time use or permit the use of the whole or any part of any of the promenades for the purposes of processions carnivals sports motor races motor-cycle races cycle races and similar purposes and at such times may close the whole or any part of the promenades against the public and may demand and take or permit to be demanded or taken such reasonable sums for the exclusive occupation of the promenades or any portion thereof or for the admission of persons vehicles goods and things to the promenades or any portion thereof as they may think fit and may exclude therefrom all persons vehicles goods and things unless payment be made of the reasonable sums demanded:

Provided that the Corporation shall not exercise the powers of this section—

- (a) on more than eight days in any year; or
- (b) on more than two Sundays in any year; or
- (c) on more than four consecutive days; or
- (d) for more than twelve hours in any period of twenty-four hours; or
- (e) so as to deprive any person bona fide going to or from any house or premises abutting on any of the promenades of reasonable access to or egress from such house or premises except so far as may be necessary in the interests of safety or demand any sum for the admission of such person to such promenade; or
- (f) so as to deprive any person of access to or egress from any railway station of the commission.

(2) In this section the expression “the promenades” means Western Esplanade Chalkwell Esplanade and the proposed new road or promenade (Improvement Work No. 5) authorised by the Southend-on-Sea Corporation Act 1947 all of which are or will be in the borough.

Prohibition  
of parking in  
front gardens.

16.—(1) (a) If representation is made in manner hereinafter mentioned to the Corporation that the amenities of the neighbourhood are prejudiced by the habitual use of the front garden of any private dwelling-house in a street in the borough as a parking place for one or more heavy commercial vehicles the Corporation on complying with the provisions of this section may make an order prohibiting the use of the front gardens of the private dwelling-houses in that street or any part thereof as a parking place for heavy commercial vehicles.

(b) A representation under the foregoing paragraph shall be made in writing and signed by not less than ten local government electors residing in private dwelling-houses in the street concerned or within one hundred yards thereof.

(2) (a) If the Corporation consider that such an order should be made they shall publish a notice thereof in a local newspaper



circulating in the borough and stating where the draft order can be inspected and copies purchased and that objections to the said order may be made in writing within one month after the date of the first publication of the notice.

(b) The Corporation shall consider all such objections and shall afford to the owner or occupier of every dwelling-house abutting or fronting on such street or such part thereof who has made objection an opportunity of being heard by a committee of the council before the order is made.

(3) (a) After considering any objections made under the last foregoing subsection the Corporation may make an order prohibiting the use of the front garden of any dwelling-house in the street or part of a street specified in the order as a parking place for one or more heavy commercial vehicles.

(b) Any such order shall come into operation at the expiration of the period of one month after the first publication in pursuance of subsection (4) of this section of the notice of the order or if an appeal is lodged when the appeal is disposed of or withdrawn or fails for want of prosecution and shall have effect for such period not exceeding five years as the Corporation may determine.

(4) When an order has been made by the Corporation under this section they shall give notice thereof and of the right of appeal by publication in a local newspaper circulating in the borough and any person who is aggrieved by the order may appeal to a magistrates' court:

Provided that in its application to an appeal under this section section 300 of the Act of 1936 shall have effect as if the time within which such an appeal may be brought were one month after the first publication in pursuance of this subsection of the notice of the order to which the appeal relates.

(5) For the purposes of this section—

“dual-purpose vehicle” means a vehicle constructed or adapted for the carriage both of passengers and of goods or burden of any description being a vehicle of which the unladen weight does not exceed two tons and which either—

(a) satisfies the conditions as to construction specified in the First Schedule to this Act; or

(b) is so constructed or adapted that the driving power of the engine is or by the appropriate use of the controls of the vehicle can be transmitted to all the wheels of the vehicle;

“heavy commercial vehicle” means any vehicle (not being a dual-purpose vehicle) whether mechanically propelled



PART II  
—cont.

or not constructed or adapted for the carriage of goods and having an unladen weight exceeding thirty hundredweight;

“ front garden ” means so much of a garden or land belonging to or used in connection with a private dwelling-house as lies in front of—

(a) any building line prescribed by the Corporation in respect of the land under the provisions of any enactment; or

(b) if there be no such line then any line beyond which a house or building may not be erected on the land without infringing a condition enforceable by the Corporation under subsection (2) of section 147 of the Housing Act 1957; or

(c) if there be neither of such lines then the line beyond which a house or building may not (except with the consent of the Corporation) be erected or brought forward on the land without contravening the provisions of section 75 of the Act of 1959;

“ private dwelling-house ” means a dwelling-house of which no part is used for the purposes of any trade or business and includes a block of flats no part of which is used for the purposes of any trade or business.

(6) The occupier of a front garden or part thereof or the person having control of a front garden or part thereof who permits the same to be used in contravention of an order under this section and any person who parks a heavy commercial vehicle in a front garden in contravention thereof shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding twenty shillings.

## PART III

## SANITATION AND BUILDINGS

*Sewers drains and sanitary conveniences*

Fine for  
improper  
construction  
or repair of  
water-closet  
etc.

17.—(1) If a water-closet drain or soil pipe in the borough is so constructed or repaired as to be prejudicial to health or a nuisance the person who undertook or executed the construction or repair thereof shall unless he shows that the prejudice to health or nuisance could not have been avoided by the exercise of reasonable care be liable to a fine not exceeding twenty pounds.

(2) A person charged with an offence under this section (hereafter in this section referred to as “ the original defendant ”) shall upon information duly laid by him and on giving to the prosecutor not less than three clear days’ notice of his intention be entitled to have any other person being his agent servant or

workman to whose act or default he alleges that the offence was due brought before the court at the time appointed for the hearing of the charge and—

PART III  
—cont.

(a) if after the commission of the offence has been proved the original defendant proves that the offence was due to the act or default of that other person that other person may be convicted of the offence; and

(b) if the original defendant further proves that he used all due diligence to secure that the water-closet drain or soil pipe in question was so constructed or repaired as not to be prejudicial to health or a nuisance he shall be acquitted of the offence.

(3) Where the original defendant seeks to avail himself of the provisions of subsection (2) of this section—

(a) the prosecutor as well as the person whom the original defendant charges with the offence shall have the right to cross-examine the original defendant if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence; and

(b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

18. For the purposes of section 44 of the Act of 1936 any part of a building in the borough being a part occupied as a separate dwelling shall be treated as a separate building:

Closet  
accommoda-  
tion for  
separate  
dwellings.

Provided that where any part or parts of a building occupied as aforesaid has or have been let for occupation without the consent of the owner of the building the person so letting that part or those parts shall be deemed to be the owner thereof for the purpose of the said section 44.

19.—(1) The Corporation may by notice require a contractor engaged in or upon any building operations in the borough or in or upon the construction or reconstruction of any works therein within such time as may be specified in the notice—

Sanitary  
conveniences  
for persons  
employed on  
construction  
work.

(a) to provide sufficient and satisfactory sanitary conveniences for the workpeople employed thereon; and

(b) where the workpeople employed thereon comprise both men and women to provide as aforesaid for men and women separately;

if it is reasonably practicable so to do:

Provided that this section shall not apply to building operations or works—

(i) to which section 107 or section 108 of the Factories Act 1937 applies; or

(ii) at any mine or quarry within the meaning of the Mines and Quarries Act 1954.



PART III  
—cont.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

Disconnection  
of drains.

20.—(1) Where a person in the borough—

- (a) reconstructs in the same or a new position a drain which communicates with a sewer or another drain;
- (b) executes any works to such a drain so as permanently to discontinue its use; or
- (c) executes any works on premises served by such a drain so as permanently to discontinue its use;

he shall cause any drains or parts of drains thereby becoming disused or unnecessary to be disconnected and sealed at such points on or within the boundaries of the premises served thereby as the surveyor may reasonably prescribe.

(2) A person who knowingly fails to comply with this section shall be liable to a fine not exceeding five pounds and a daily fine not exceeding twenty shillings.

*Buildings and structures*Ruinous and  
dilapidated  
buildings and  
neglected  
sites.

21.—(1) Paragraphs (b) and (ii) of subsection (1) of section 58 of the Act of 1936 and so much of subsection (2) of that section as relates to those paragraphs shall cease to have effect in the borough and the following provisions of this section shall have effect in lieu thereof.

(2) Where a building in the borough is by reason of its ruinous or dilapidated condition seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner thereof—

- (a) to execute such works of repair or restoration; or
- (b) if he so elects to take such steps for demolishing the building or any part thereof and removing any rubbish or other material resulting from or exposed by the demolition;

as may be necessary in the interests of amenity.

(3) Where rubbish or other material resulting from or exposed by the demolition or collapse of a building in the borough is lying on the site of the building or on any land occupied with the building and by reason thereof the site or land is in such a condition as to be seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner of the site or land to take such steps for removing the rubbish or material as may be necessary in the interests of amenity.

(4) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they

apply in relation to the notices mentioned in subsection (1) of that section and in their application to a notice given under subsection (2) of this section—

PART III  
—cont.

- (a) subsection (2) of the said section 290 shall be construed as requiring the notice to indicate both the nature of the works of repair or restoration and the works of demolition and removal of rubbish or material; and
- (b) subsection (6) of the said section 290 shall be construed as authorising the Corporation to execute subject to the provisions of that subsection at their election either the works of repair or restoration or the works of demolition and removal of rubbish or material.

(5) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish or material removed by the Corporation under this section.

(6) In this section the expression “building” includes a structure and a fence (other than a hedge).

22.—(1) No person shall in or in connection with a house shop or office in the borough construct without the consent of the Corporation any cellar or room the floor level of which is lower than the ordinary level of the subsoil water on under or adjacent to the site of the house shop or office. Cellars and rooms below subsoil water level.

(2) A consent under this section may be given subject to such conditions as to the construction or use of the premises as may be specified therein and conditions specified therein shall be binding on successive owners of the house shop or office.

(3) Any person aggrieved by a refusal of the Corporation to give their consent under this section or by any condition attached to a consent given thereunder may appeal to a magistrates' court.

(4) If any person constructs a cellar or room in contravention of subsection (1) of this section or any condition attached to a consent given under this section—

- (a) he shall be liable to a fine not exceeding twenty pounds; and
- (b) the Corporation may by notice require him within such reasonable time as may be specified in the notice either to alter the cellar or room so that its construction will no longer contravene the said subsection or condition or if he so elects to fill it in or otherwise make it unusable and if he fails to comply with the notice the Corporation may themselves fill in the cellar or room or otherwise make it unusable and recover from him the expenses of so doing.



PART III  
—cont.

(5) If any person uses a cellar or room in contravention of any such condition he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

(6) This section shall have effect subject to the provisions of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 as to the avoidance for want of registration as a local land charge of a prohibition or restriction imposed by virtue of any such conditions.

(7) Nothing in this section shall apply to the construction of any cellar or room in connection with a shop or office which forms part of a railway station or in connection with any premises in respect of which a provisional grant of a justices' licence for the sale of intoxicating liquor for consumption on the premises has been made before the construction of the cellar or room is commenced.

Food storage  
accommoda-  
tion.

23.—(1) Every house erected in the borough after the passing of this Act shall be provided with sufficient and suitable accommodation for the storage of food and any other house in the borough not so provided shall if reasonably practicable be so provided within three months from the date of service by the Corporation on the owner thereof of a notice requiring it to be so provided.

(2) Any person aggrieved by a requirement imposed by a notice under the foregoing subsection may appeal to a magistrates' court.

(3) If a house required to be provided as aforesaid is occupied when not so provided the owner thereof shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding twenty shillings.

(4) The owner of a house on whom a notice is served under subsection (1) of this section shall have power notwithstanding any lease or other agreement to enter the house after giving not less than forty-eight hours' notice to the occupier and carry out such work as may be necessary to comply with the notice.

(5) For the purposes of this section—

(a) the expression "house" includes any part of a building which is occupied or intended to be occupied as a separate dwelling;

(b) the conversion of a building into two or more dwellings shall be deemed to be the erection of each of those dwellings; and

(c) a house the erection whereof was commenced before the passing of this Act shall not be deemed to have been erected after the passing of this Act:

Provided that where a part of a building has been let for occupation as a separate dwelling without the consent of the owner of the building the person so letting that part of the building shall be deemed to be the owner.



24.—(1) Where plans of a house have been deposited with the Corporation in pursuance of building byelaws the Corporation may reject the plans if they do not show that the house will be provided with a bathroom containing either a fixed bath or adequate fixed shower bath. Provision of  
bathrooms.

(2) If the Corporation reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) For the purposes of this section the expression “house” includes any part of a building which is intended to be occupied as a separate dwelling.

25.—(1) Section 145 of the Act of 1959 shall cease to apply to buildings and structures in the borough and section 58 of the Act of 1936 as amended by section 21 (Ruinous and dilapidated buildings and neglected sites) of this Act in its application to buildings and structures in the borough shall have effect as if— Dangerous  
buildings  
and  
structures.

(a) in subsection (1) before the final “or” in paragraph (a) there were inserted the words “or in any street on which the building or structure abuts”; and

(b) subsection (3) were omitted.

(2) If the surveyor is satisfied that a building or structure or part of a building or structure is in such a state or is used to carry such loads as to be dangerous and that immediate action should be taken to remove the danger he may take such steps as may be necessary for that purpose.

(3) Before exercising his powers under this section the surveyor shall if it is reasonably practicable to do so give notice of his intention to the owner and the occupier of the building or structure.

(4) The Corporation may recover from the owner the expenses incurred by them or the surveyor under this section but without prejudice to any right of the owner to recover those expenses from another person.

(5) In proceedings by the Corporation to recover expenses incurred as aforesaid it shall be a defence to prove that action under this section instead of under section 58 of the Act of 1936 was unnecessary.

(6) So far as expenses incurred by the Corporation or the surveyor under this section consist of expenses of fencing off the building or structure or arranging for it to be watched the expenses shall not be recoverable by the Corporation in respect of any period after the danger has been removed by other steps under this section or an order made under section 58 of the Act of 1936 for the purpose of its removal has been complied with or has been executed as mentioned in subsection (2) of that section.



PART III  
—cont.

(7) Where in the exercise or purported exercise of his powers under this section the surveyor has damaged or demolished any building or structure the owner may apply to a magistrates' court to determine whether the surveyor was justified in so doing and if the court determines that the surveyor was not so justified the owner shall be entitled to compensation which in case of dispute shall be determined in accordance with subsection (2) of section 278 of the Act of 1936.

Power to  
require  
vacation of  
premises  
during  
fumigation.

26.—(1) If the Corporation serve notice under subsection (3) of section 83 of the Act of 1936 on the owner and occupier of any premises requiring that they shall be allowed to employ gas for the purpose of destroying vermin on the premises—

(a) the notice to the occupier may also require that the premises shall as from such date as may be specified in the notice be vacated until the Corporation give the occupier further notice that the premises can safely be reoccupied; and

(b) the Corporation may also serve notice on the occupiers of any other premises having any floor wall or ceiling contiguous with the first-mentioned premises or into which there is reason to apprehend that the gas may penetrate requiring that those other premises shall be vacated as aforesaid.

(2) No person shall be required to vacate any premises under this section for any period unless shelter or other accommodation has been provided for him by the Corporation free of charge for that period and any notice given under this section shall specify the shelter or accommodation so provided.

(3) Any person aggrieved by a requirement of the Corporation under this section may appeal to a magistrates' court.

(4) If any person fails to comply with a notice requiring the vacation of any premises under this section he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding ten shillings.

(5) The Corporation may pay to any person vacating premises in pursuance of a notice under this section such reasonable allowance as they think fit towards his expenses in removing from and returning to the premises.

Conditional  
passing of  
building  
plans.

27.—(1) If any person by whom or on whose behalf plans are deposited in pursuance of building byelaws with respect to a proposal fails to furnish the Corporation with any information whether by way of specifications calculation or otherwise which the council are by virtue of the byelaws entitled to require in connection with the building work or fitting to which the plans relate the council may with the consent of that person instead of rejecting the plans as defective pass them subject to a condition that no part of the proposed building work or fitting shall be

begun before the expiration of a specified period not exceeding twenty-eight days after the said information has been deposited with the Corporation.

PART III  
—cont

(2) The notice given by the council in pursuance of subsection (2) of section 64 of the Act of 1936 shall contain a statement of any condition imposed under subsection (1) of this section.

(3) Until the said information has been so deposited and until the expiration of the said period thereafter—

(a) the plans shall for the purposes of subsections (4) and (5) of section 65 of the Act of 1936 be deemed not to have been passed; and

(b) for the purposes of those subsections the notice containing a statement of the imposition of any such condition shall be deemed to have been a notice of rejection of the plans.

(4) If the said information is duly deposited—

(a) the original deposit and passing of the plans shall be void; and

(b) the council shall treat the plans as if they incorporated the said information and were deposited in pursuance of the building byelaws on the date when the said information was deposited with the Corporation:

Provided that the council shall not on reconsidering them under this subsection reject the said plans on any ground on which they could have been lawfully rejected when first deposited.

#### PART IV NUISANCES

28.—(1) Any excessive or unreasonable or unnecessary noise or vibration which is prejudicial to health or a nuisance shall be a statutory nuisance for the purposes of Part III of the Act of 1936: Noise or vibration nuisance.

Provided that—

(a) in any proceedings brought by virtue of this section under the said Part III in respect of a noise or vibration occasioned in the course of any trade or business it shall be a defence for the defendant to prove that he has used the best practicable means for preventing or mitigating the noise or vibration having regard to the cost and to other relevant circumstances;

(b) a justice shall not entertain a complaint under section 99 of the said Act with respect to a noise unless the complaint is made by not less than three occupiers of premises within hearing of the noise;



PART IV  
—cont.

(c) a justice shall not entertain a complaint under the said section 99 with respect to vibration.

(2) Nothing in this section shall apply to a noise or vibration occasioned by—

(a) the exercise by railway undertakers of statutory powers conferred in relation to their railway undertaking; or

(b) the exercise by the Corporation of statutory powers conferred in relation to their airport undertaking.

(3) Nothing in this section shall affect the power of the Corporation to make byelaws under section 249 of the Act of 1933.

Nuisance from  
pigeons etc.

29.—(1) For the purpose of abating or mitigating any nuisance annoyance or damage caused in the borough by house-doves pigeons or starlings having or believed by the Corporation to have no owner or of preventing or minimising any such nuisance annoyance or damage which might in the opinion of the Corporation be so caused the Corporation may notwithstanding anything in the Larceny Act 1861 or in any other Act or at common law—

(a) seize and humanely destroy or cause to be seized and humanely destroyed any such house-doves pigeons or starlings in excess of such numbers as the Corporation consider reasonable;

(b) sell or otherwise dispose of or cause to be sold or otherwise disposed of the carcasses of any such house-doves pigeons or starlings; and

(c) take such other steps as they think necessary for any such purpose:

Provided that the Corporation shall not in the exercise of the powers conferred by this section—

(i) enter upon any premises (other than a public highway) without the consent of the occupier or the person having the exclusive control and management of the premises; or

(ii) execute or do any work or thing affecting the structure of any building or the use of any land without the consent of the owner of the building or land.

(2) Nothing in this section shall authorise the seizure or destruction of any wild bird in contravention of the provisions of the Protection of Birds Act 1954 or any order made thereunder.

PART V  
PUBLIC ORDER AND PUBLIC SAFETY

30.—(1) This section applies to apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding six hundred and fifty volts or other equipment so designed and of the transformers required to raise the voltage so as to operate the signs or equipment not being apparatus which—

Firemen's  
switches for  
luminous  
tube signs.

(a) is inside a building and is attended while in operation; or

(b) is used for lighting only and is before the appointed day fitted with a readily accessible switch on the low-voltage side of the transformer.

(2) As from the appointed day apparatus in the borough to which this section applies shall be provided with a cut-off switch on the low-voltage side of the transformer and the switch shall be so placed and coloured or otherwise marked as to satisfy such reasonable requirements as the Corporation may impose to ensure that it shall be readily accessible to and recognisable by firemen.

(3) Not less than fourteen days before work is begun to instal apparatus to which this section applies the consumer shall give notice to the Corporation showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

(4) Where apparatus to which this section applies has been installed before the appointed day the consumer shall not less than fourteen days before the appointed day give notice to the Corporation—

(a) in the case of apparatus already provided with a cut-off switch on the low-voltage side of the transformer showing where the switch is placed and how it is coloured or otherwise marked;

(b) in the case of apparatus not already provided with such a cut-off switch as aforesaid showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the Corporation as required by subsection (3) or subsection (4) of this section the proposed or as the case may be actual position colouring or marking of the switch shall be deemed to satisfy the requirements of the Corporation unless within ten days from the date of service of the notice the Corporation have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers shall for the purposes of this section be deemed to satisfy the requirements of the Corporation.

(7) A person aggrieved by a counter-notice served by the Corporation under subsection (5) of this section may appeal to a magistrates' court and the court if it allows the appeal shall order the cancellation of the counter-notice.



PART V  
—cont.

(8) The owner or the occupier of premises where apparatus is installed which does not comply with subsection (2) of this section shall be guilty of an offence.

(9) A person who fails to give notice as required by subsection (3) or subsection (4) of this section shall be guilty of an offence.

(10) A person guilty of an offence under this section shall be liable to a fine not exceeding five pounds and in the case of an offence under subsection (8) of this section to a daily fine not exceeding two pounds.

(11) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations 1937 or any regulations that may be made under section 60 of the Electricity Act 1947.

(12) This section shall not apply to premises or any part of premises in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force:

Provided that where any luminous tube sign to which but for this subsection subsection (1) of this section would apply is proposed to be fitted on or in any such premises the owner or occupier thereof shall before such apparatus is fitted give notice to the Corporation informing them of the position in which it is proposed to place the cut-off switch.

Parts of  
buildings  
used for  
storage of  
inflammable  
substances.

## 31.—(1) (a) Where—

(i) (A) part of a building in the borough is used for the storage for the purpose of sale or trade of any substance to which this section applies; and

(B) that part of such building is also used as a habitable room or a place in which any person works or any other part of such building which communicates directly or indirectly with or is adjacent to or constructed at a level higher than the first-mentioned part is so used; and

## (ii) either—

(A) such storage is in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building for the purpose mentioned in sub-paragraph (i) (B) of this paragraph; or

(B) such storage is in such manner as to be liable to cause fire or explosion;

the Corporation may by order apply the following provisions of this section to the part of the building so used for storage.

(b) An order made under the foregoing paragraph shall come into force on such date (not being earlier than three months after the date on which notice of the making of the order is given pursuant to paragraph (d) of this subsection) as may be

specified in the order or if an appeal is lodged against the order pursuant to paragraph (e) of this subsection on such later date as may be specified by the court.

(c) The Corporation shall revoke any such order by a further order if at any time the part of the building to which the first-mentioned order relates and every other part of the building which communicates directly or indirectly with or is adjacent to or constructed at a level higher than the part of the building to which the order relates ceases to be used as a habitable room or as a place in which any person works and notice thereof shall have been given to the Corporation.

(d) Notice of every order made under this section shall be given to the owner of the building and to the occupier of the part of the building to which the order relates.

(e) Any person on whom notice of the making of an order under paragraph (a) of this subsection is so served may appeal to a magistrates' court against the making of the order on the ground that it is not within the powers conferred on the Corporation by the said paragraph (a).

(f) An order under paragraph (a) of this subsection shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(2) The Corporation may by notice require the occupier of any part of a building to which an order made under subsection (1) of this section for the time being relates to provide within such reasonable period as may be specified in the notice—

- (i) adequate means for extinguishing fire and safeguards to prevent the spread of fire to or from the part of the building used for such storage;
- (ii) means of ready escape in case of fire from any part of the building used as a habitable room or as a place in which any person works and which communicates directly or indirectly with or is adjacent to or constructed at a level higher than the part of the building used for such storage and from the part of the building used for such storage; and
- (iii) notices in or on the part of the building used for such storage indicating the existence of danger from fire.

(3) The occupier of any building who—

- (a) by reason of a restriction affecting his interest in the building is precluded from executing works for the purpose of complying with any notice given by the Corporation under this section; or
- (b) considers that the owner of the building or any other person having an interest therein should contribute



PART V  
—cont.

towards the cost of the execution of works as aforesaid and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with such notice or (as the case may be) to direct the owner of the building or any other person who appears to the court to have an interest therein to contribute towards the cost of such works as aforesaid such an amount as appears to the court in all the circumstances of the case to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(4) Upon compliance with any notice given under subsection (2) of this section the Corporation shall forthwith issue to the occupier to whom such notice has been given a certificate specifying precisely and in detail—

- (a) the matters provided by the occupier in compliance with the notice; and
- (b) the maximum number of persons inhabiting or working in or proposing to inhabit or work in any part of the building to which sub-paragraph (i) (B) of subsection (1) (a) of this section applies.

(5) After the expiration of the period specified in any notice given by the Corporation under subsection (2) of this section a person shall not use or permit to be used the part of the building to which the notice relates for the storage for the purpose of sale or trade of any substance to which this section applies unless the building is certified by the Corporation to comply with the requirements specified in the notice and the matters provided by the occupier in compliance with the notice are adequately maintained.

(6) If after the grant of a certificate for the purpose of this section with regard to any part of a building the occupier thereof proposes—

- (a) to make any material extension or material structural alteration of any part of that building; or
- (b) to increase materially the number of persons inhabiting or working in any part of that building; or
- (c) to increase materially the extent of the storage for the purpose of sale or trade of any substance to which this section applies or to store any substances other than those in respect of which the certificate was granted and which will increase the risk of fire in that part of that building;

the occupier shall give notice to the Corporation of the proposal.

(7) The Corporation may from time to time upon giving notice thereof to such persons as are mentioned in paragraph (d) of subsection (1) of this section alter or revoke any certificate issued by them under this section and such alteration or revocation shall come into force on such date (not being earlier than one month after the date on which such notice is given) as may be specified in the notice or if an appeal is lodged against such alteration or revocation under subsection (8) of this section on such later date as may be specified by the court.

(8) (a) Any person aggrieved by a requirement of the Corporation under subsection (2) of this section may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement is not justified by the terms of this section;
- (ii) that the requirement is unreasonable in character or extent;
- (iii) that the period specified in the notice is not reasonably sufficient for the purpose of complying with the requirements in the notice.

(b) Any person aggrieved by the refusal of the Corporation to grant a certificate under this section or by any alteration or revocation of such a certificate may appeal to a magistrates' court.

(9) If any person contravenes the provisions of this section he shall be liable—

- (a) in the case of a contravention of subsection (5) of this section to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds; and
- (b) in the case of a contravention of subsection (6) of this section to a fine not exceeding five pounds.

(10) This section applies to—

- (a) any substance which is gaseous at a temperature of thirty-three degrees Fahrenheit at atmospheric pressure and which is inflammable; and
- (b) any other substance which when tested by a method approved by the Secretary of State gives off an inflammable vapour at a temperature of less than one hundred and fifty degrees Fahrenheit:

Provided that the Corporation shall not make any requirement under this section with respect to any building in which no such substance is stored other than—

- (a) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act 1928 apply; or
- (b) any substance which does not give off an inflammable vapour at a temperature of less than ninety degrees



PART V  
—cont.

Fahrenheit and which is stored in securely closed metal containers in good condition and containing not more than five gallons each; or

- (c) any stain or polish which does not when tested as aforesaid give off an inflammable vapour at a temperature of less than eighty degrees Fahrenheit and which is stored in reasonably closed metal or glass containers in good condition each containing in the case of a metal container not more than five gallons and in the case of a glass container not more than one pint.

(11) In this section the expression “building” where used in relation to the storage of substances therein includes the curtilage of the building.

(12) Nothing in this section shall apply to a part of a building which is subject to the Factories Acts 1937 to 1959 or regulations made under those Acts.

Disused petrol  
tanks.

32.—(1) Where a tank or other fixed container which has been used for the storage of petroleum spirit and is no longer used for that purpose is kept on any premises in the borough the occupier of the premises or if the premises are unoccupied the owner of the premises shall take all such steps as may be reasonably necessary to prevent danger from such container.

(2) Any officer of the Corporation duly authorised by them may on producing a copy of his authority purporting to be signed by the town clerk require the occupier of the premises on which is situated any tank or other fixed container which has been used for the storage of petroleum spirit and is no longer used for that purpose to show him such container and permit him to ascertain whether steps have been taken to comply with the provisions of this section.

(3) If any person after due warning contravenes the provisions of subsection (1) of this section he shall be liable to a fine not exceeding ten pounds and the Corporation may take such steps as may be reasonably necessary to prevent danger from the container to which the warning relates and may recover from such person the expenses incurred by them in so doing.

(4) In this section the expression “petroleum spirit” has the same meaning as in the Petroleum (Consolidation) Act 1928.

Precautions  
against  
fire in  
certain  
buildings.

33.—(1) Where plans for the erection or extension of a building are in accordance with building byelaws deposited with the Corporation and the plans show that the building—

- (a) will not be provided with such means of access for fire brigade appliances and personnel; or

(b) will not leave or make provision for such means of access for fire brigade appliances and personnel to an existing building or to a proposed building the plans of which have been passed by the Corporation;

as the Corporation may consider necessary to enable effective action to be taken by them in case of fire at such building or existing building or proposed building (as the case may be) the Corporation shall reject the plans.

(2) If the Corporation reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) Any question arising under this section between the Corporation and a person by whom or on whose behalf the plans are deposited as to whether the plans show that the building will be provided with or as the case may be will leave or make provision for the necessary access for fire brigade appliances and personnel may on the application of that person be determined by a magistrates' court.

34.—(1) If it appears to the Corporation that for the purpose of preventing fire in any building in the borough to which section 59 of the Act of 1936 applies or for the purpose of preventing injury or danger to persons resorting thereto—

Preventing  
fire in  
public or  
other  
buildings.

(a) the apparatus or fittings for lighting or heating the building require alteration; or

(b) the arrangement of the chairs and seating requires alteration;

the Corporation may by notice require the owner or occupier of the building to make such provision in regard to the matters aforesaid as may be necessary:

Provided that—

(i) this subsection shall not apply to premises in respect of which a licence under the Theatres Act 1843 or the Cinematograph Acts 1909 and 1952 is for the time being in force;

(ii) nothing in this section shall affect the operation of the Factories Act 1937 or any regulation or order made thereunder.

(2) The provisions of section 290 of the Act of 1936 with respect to appeals against and the enforcement of notices requiring the execution of works shall apply in relation to any notice given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.



PART V  
—cont.Underground  
car parks.

35.—(1) Where plans of any proposed work deposited with the Corporation in pursuance of building byelaws include proposals for the construction alteration or extension of an underground car park or the alteration of a building for use as an underground car park the Corporation may notwithstanding anything in section 64 of the Act of 1936 reject the plans unless there are put before them such proposals as appear to them to be satisfactory for preventing or reducing danger from fire being proposals relating to all or any of the following matters:—

- (a) the construction of the underground car park and the approaches thereto and the materials to be used in such construction;
- (b) the provision of adequate means of ventilation to the underground car park;
- (c) the provision of electrical and mechanical and heating equipment in the underground car park;
- (d) the provision of fire-fighting equipment and appliances in connection with the underground car park;
- (e) the provision of safe and adequate means of ingress to and egress from the underground car park;
- (f) the provision of adequate means of access to the underground car park for fire brigade appliances and personnel.

(2) Subsection (2) of section 64 and subsections (2) to (5) of section 65 of the Act of 1936 shall have effect as if this section were a section of that Act.

(3) If any question arises between the Corporation and a person who has executed or proposes to execute any work—

- (a) whether the work is such as is mentioned in subsection (1) of this section; or
- (b) whether the Corporation ought to have treated as satisfactory any proposal put before them in pursuance of the said subsection;

that question may on the application of that person be referred to the Secretary of State for determination and the Secretary of State (after holding an inquiry if he thinks fit) shall determine any question submitted to him under paragraph (a) of this subsection or (as the case may be) may direct the Corporation to treat as satisfactory the said proposal or the said proposal as modified by him.

(4) If after plans of any underground car park have been passed by the Corporation in consequence of any proposals made under subsection (1) of this section it appears to the Corporation that any such proposal has not been carried into effect or is not being observed the Corporation may by notice to the owner



or occupier of the underground car park prohibit its use as an underground car park until the proposal has been carried into effect or is being observed.

PART V  
—cont.

(5) If any person on whom a notice has been served under subsection (4) of this section uses the underground car park or permits it to be used as an underground car park without giving effect to or securing the observance of any proposal specified in the notice he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

36.—(1) Without prejudice to the provisions of section 35 (Underground car parks) of this Act the Corporation may by notice to the owner or occupier of any underground car park in the borough which is first brought into use after the passing of this Act require compliance with such conditions as to the use of the underground car park as may be specified in the notice for the purpose of preventing or reducing danger from fire therein and in the case of any underground car park as aforesaid in respect of which plans are not deposited with the Corporation in pursuance of building byelaws the Corporation may by notice to the owner or occupier thereof require him to comply with such conditions as aforesaid and with such other conditions with regard to the matters specified in paragraphs (b) to (f) of subsection (1) of the said section 35 as the Corporation think fit.

Further  
provision as  
to under-  
ground car  
parks.

(2) If any person on whom a notice under this section has been served fails to comply with any requirements specified in the notice he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

(3) A person on whom a notice under this section has been served may within twenty-one days of the service of the notice appeal to the Secretary of State on the ground that any requirement specified in the notice is not justified by this section or is unreasonable in character or extent or is unnecessary.

(4) If so required by any such person the Corporation shall deliver to him a certificate signed by the town clerk stating the grounds on which the Corporation have made any requirement under this section and where such person appeals to the Secretary of State against such requirement the certificate shall be submitted by him to the Secretary of State at the same time that notice of appeal is given or as soon as possible after the receipt by such person of the certificate.

(5) On consideration of any such appeal the Secretary of State may if he thinks it necessary or desirable cause an inquiry to be held and a report to be made to him by a person appointed by him for the purpose and may if he thinks fit confirm modify alter or annul any requirement made by the Corporation under this section.



PART V  
—cont.

Interpretation  
and powers of  
entry for  
purposes of  
last two  
foregoing  
sections.

37.—(1) In the last two foregoing sections the expression “underground car park” means a building or part of a building (other than a building or part of a building in respect of which a licence issued by a local authority or the Secretary of State under section 2 or section 3 of the Petroleum (Consolidation) Act 1928 is in force or a building or part of a building to which regulations made by the Secretary of State under section 10 of that Act apply) which provides waiting space or storage space (either alone or in addition to any other facility or service) for cars or other vehicles and of which any part of the floor is situated more than four feet below the surface of the ground adjoining or nearest to such building or part of a building.

(2) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of the last two foregoing sections shall be provisions which it is the duty of the Corporation to enforce.

Devolution  
of licences  
in case of  
death of  
licensee.

38. Upon the death of the holder of a licence granted in respect of a place or premises in the borough under the Cinematograph Act 1909 or the Theatres Act 1843 the person carrying on at the place or premises the functions in respect of which the licence was granted or acting as the actual and responsible manager of the place or premises in respect of which the licence was granted shall be deemed to be the holder of the licence until the licence has been transferred to some other person or has been revoked.

Removal of  
vehicles of  
unknown  
ownership.

39.—(1) If any vehicle—

(a) is left on any land belonging to or under the control of the Corporation or on any grass verge or open space provided or laid out by the Corporation in pursuance of the Housing Act 1957 or any Act repealed by that Act; or

(b) is left on any unfenced land not belonging to or under the control of the Corporation and the owner of the land—

(i) requests the Corporation to remove the vehicle;

or

(ii) consents to the removal of the vehicle by the Corporation; or

(c) is left on any unfenced land not belonging to or under the control of the Corporation and the owner of the land is unknown and cannot after diligent inquiry be found and the vehicle appears to have been abandoned;

the Corporation may after giving not less than forty-eight hours' notice to the owner of the vehicle unless it is not practicable after reasonable inquiry to ascertain the name and address of the owner remove the vehicle for safe custody and may recover from the owner of the vehicle the expenses incurred in such removal and safe custody:

Provided that this section shall not apply to a vehicle left—

(a) on a road (as defined in section 257 of the Road Traffic Act 1960); or

(b) in a parking place provided by the Corporation unless the vehicle has been left in the parking place for a period beyond that prescribed by any byelaws relating to the parking place.

(2) If any vehicle to which subsection (1) of this section applies be not within six months of its removal by the Corporation proved to the satisfaction of the Corporation to belong to any claimant it shall thereupon vest in the Corporation.

(3) In this section “unfenced land” includes land the fence of which is in such a condition that it does not prevent a vehicle from being moved whether or not by its own motive power from a street on to the land.

40.—(1) No person shall without the consent of the Corporation erect provide place or use any structure or place any chair on any part of the foreshore belonging or let to them unless he is authorised to do so by or under an enactment: Unauthorised  
on foreshore.

Provided that nothing in this section shall prevent a person's placing a chair on the foreshore for his own personal use or that of his family.

(2) Any person aggrieved by the refusal of the Corporation to give their consent under the foregoing subsection may appeal to a magistrates' court.

(3) If any person erects provides or places a structure or chair in contravention of subsection (1) of this section he shall be liable to a fine not exceeding five pounds and if after his conviction thereof the structure or chair remains on any such part of the foreshore he shall be liable to a fine not exceeding twenty shillings for each day on which it so remains.

(4) If any person uses a structure in contravention of subsection (1) of this section he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding twenty shillings.

(5) In this section the expression “structure” means any shed hut shelter tent booth stall stand shop or other erection or obstruction whether on wheels or not.

41.—(1) For the prevention of noise or of danger obstruction or annoyance to persons boating or bathing or using the foreshore the Corporation may make byelaws— Further  
powers to  
make byelaws  
as to boats.

(a) requiring the fitting of effectual silencers on boats propelled by internal combustion engines;

(b) regulating the speed and use of mechanically propelled boats; and

(c) prohibiting regulating or controlling the keeping or landing of boats on such parts of the foreshore as may be specified in the byelaws.

PART V  
—cont.

(2) Byelaws made under this section may contain different provisions for different classes or descriptions of boats.

(3) No byelaw made under this section shall—

- (a) affect any right or privilege of owners of boats engaged in the fishing industry which may exist at the time of the making of the byelaw; or
- (b) prevent the owner of any part of the foreshore or any person with his consent exercising any rights which he could have exercised if the byelaw had not been made; or
- (c) in the case of a byelaw made under paragraph (a) of subsection (1) of this section apply to any boat which is ordinarily kept outside the borough and is not required to be licensed by the Corporation.

Local extent  
of byelaws  
as to boats.

42.—(1) The power of the Corporation to make byelaws as to boats whether under this Act or under any other enactment shall include power to provide that any such byelaw shall operate not only within the borough but also within the restricted area.

(2) Any offence committed within the restricted area against any byelaw so operating may be inquired into and dealt with as if it had been committed within the borough.

(3) In this section “the restricted area” means the area coloured blue on the map signed in triplicate by the Right Honourable The Lord Merthyr the chairman of the committee of the House of Lords to whom the Bill for this Act was referred one copy of which map has been deposited in the office of the Clerk of the Parliaments House of Lords one copy in the Private Bill Office of the House of Commons and one copy with the town clerk in his office in the borough.

## PART VI

## PARKS CEMETERIES AND OTHER MUNICIPAL PROPERTY

Parking places  
in parks etc.

43. For the purpose of providing a parking place under section 68 of the Public Health Act 1925 as amended by section 16 of the Restriction of Ribbon Development Act 1935 and under section 67 (Use of certain lands for sports and games &c.) of the Southend-on-Sea Corporation Act 1947 the Corporation may with the consent of the Minister utilise any part of a park pleasure ground or open space provided by them or under their management and control:

Provided that the part of any park pleasure ground or open space utilised under this section shall not exceed one-eighth of the total area thereof or one acre whichever is the less.



44.—(1) The Corporation may in any park pleasure ground or open space provided by them or under their management and control provide a boating pool.

PART VI  
—cont.  
Boating pools.

(2) The Corporation may provide such buildings and execute such works as may be necessary or expedient in connection with the provision of a boating pool under this section and references in the following provisions of this section to a boating pool so provided shall include references to any buildings provided or works executed under this subsection and to anything with which any such building or boating pool is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

- (a) themselves manage a boating pool provided under this section making such reasonable charges for the use thereof or admission thereto as they think fit; or
- (b) let it or any part thereof for such consideration and on such terms and conditions as they think fit.

(4) The powers of the Corporation under subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 with respect to a piece of water in a park or pleasure ground provided by them shall be extended so as to be exercisable with respect to any boating pool provided under this section.

(5) Nothing in this section shall authorise the execution of any works on over or under tidal lands below high-water mark of ordinary spring tides except in accordance with plans and sections approved by the Minister of Transport and subject to such conditions and restrictions as the Minister of Transport may prescribe before such work is begun.

45. Section 44 of the Public Health Acts Amendment Act 1890 shall in its application to the borough have effect as if—

Closing of  
public parks

- (a) the Corporation had been empowered to close to the public any park or pleasure ground on six consecutive days (excluding Sunday) on any one occasion and in computing any period of six days Saturday and Monday shall be deemed to be consecutive days;
- (b) the proviso to subsection (1) of that section had been omitted and there were substituted the following:—

“ Provided that—

- (i) no such park or pleasure ground shall be closed on more than three Sundays in any one year; and
- (ii) on any public holiday on which the Corporation think fit to close to the public any such park or



PART VI  
—cont.

pleasure ground not more than one-quarter of the total area of all the parks and pleasure grounds provided by them or under their management and control shall be so closed at one and the same time.”

Extension of  
power to  
maintain  
burial  
grounds.

46.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power—

- (a) to put and keep in order any tombstone or memorial therein;
- (b) to level any grave therein;
- (c) to remove any tombstone or memorial on any grave therein or any railings surrounding any grave therein or any such tombstone or memorial;
- (d) to alter the position of any such tombstone memorial or railings.

(2) Before exercising a power conferred by paragraph (b) (c) or (d) of the foregoing subsection the Corporation shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in the borough with an interval between the dates of publication of not less than six clear days;
- (b) display a notice thereof in a conspicuous position in the burial ground; and
- (c) serve a notice thereof upon the owner of the grave or upon a relative of a deceased person whose remains are interred therein if after reasonable inquiry the name and address of the owner or of a relative of such a person can be ascertained.

(3) Each of the notices shall—

- (a) contain brief particulars of the Corporation's proposals and specify an address at which full particulars of the proposals can be obtained unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the Corporation will begin to carry out the proposals which shall not be earlier than the fourteenth day after the date of the later of the two publications of the notice or than the twenty-first day after the date on which the notice is first displayed in the burial ground or where notice is required to be served than the twenty-first day after the date of such service; and
- (c) state the effect of the next following subsection.

(4) If notice of objection to a proposal and of the ground thereof is given to the Corporation before the date specified under paragraph (b) of the last foregoing subsection that proposal shall not be carried out without the consent of the Minister unless the notice is withdrawn.

(5) The Corporation may put to such use as they think appropriate or destroy any tombstone memorial or railings removed under this section unless it or they is or are claimed within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section or where notice has been served under paragraph (c) thereof after the date of such service whichever is the later.

(6) Where a tombstone is removed under this section the Corporation may erect at their own expense in substitution a tombstone of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause a record to be made of each tombstone or memorial taken from the burial ground under this section or under the two next succeeding sections containing—

(a) a copy of any inscription on it; and

(b) if it is intended to preserve the tombstone or memorial a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar-General.

(8) Nothing in the foregoing provisions of this section shall relieve the Corporation from any obligation to which apart from those provisions they are subject to obtain for any work a faculty or licence of a consistory court.

Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Corporation obtain such a faculty or licence and subsection (5) thereof shall not have effect in relation to any tombstone memorial or railings for whose removal such a faculty or licence was obtained.

(9) In this section—

“ burial ground ” includes a cemetery;

“ grave ” includes a grave space;

“ tombstone ” includes a kerb.

47.—(1) Where part of a burial ground belonging to the Corporation is disused (other parts being still used for interments) the Corporation subject to the provisions of section 11 of the Open Spaces Act 1906 may manage the disused part remove or

Powers as to  
disused part  
of burial  
ground.

PART VI  
—cont.

change the position of any tombstone or memorial therein and lay out and maintain the same as a garden but the public shall not have access thereto except to such extent as the Corporation may permit.

(2) Where part of a burial ground in the borough not belonging to the Corporation is disused the owner (including a trustee for a charity) thereof may convey such part to or grant any term of years or other limited interest therein to or make any agreement with the Corporation for the purposes of this section and the Corporation may accept such conveyance thereof or grant of interest therein and enter into such agreement:

Provided that the Corporation shall not exercise any of the powers conferred upon them by this subsection with reference to any consecrated burial ground except subject to and in accordance with the provisions of section 11 of the Open Spaces Act 1906.

(3) Subject to the terms upon which the Corporation have acquired part of a burial ground or an interest therein and to the terms of any agreement made under this section the Corporation may exercise in such part of the burial ground the powers referred to in subsection (1) of this section.

Removal of  
human  
remains.

48.—(1) In the exercise of the powers of the last foregoing section the remains of any deceased person interred in the part of the burial ground in which the powers are exercised shall not be disturbed unless the Corporation find it necessary and in that case the Corporation shall remove or cause to be removed the remains of any deceased person which have to be disturbed:

Provided that the Secretary of State on the application of the Corporation may dispense with all or any of the requirements of this section on such conditions (if any) as he thinks fit.

(2) Before proceeding to remove any such remains as are referred to in the last foregoing subsection the Corporation shall publish notice of their intention so to do in a local newspaper circulating in the borough once in each of two successive weeks with an interval between such publications of not less than six clear days and display a notice in a conspicuous position in the burial ground concerned and such notice shall have embodied in it the general effect of subsections (3) (4) (5) and (6) of this section and subsection (7) of section 46 (Extension of power to maintain burial grounds) of this Act.

(3) At any time within two months after the first publication of such notice any person who is a personal representative or



relative of any deceased person in respect of whose remains the Corporation have published a notice under subsection (2) of this section may give notice in writing to the Corporation of his intention to undertake the removal of such remains and any tombstone relating thereto and thereupon he shall be at liberty to cause such remains to be removed to and reinterred in any burial ground or cemetery in which burials may legally take place and to remove such tombstone:

Provided that in respect of a closed or disused consecrated burial ground of the Church of England whether or not there is a church standing in it still in use for public worship at the time of the proposed exercise of such powers the said powers shall not be exercised unless the sanction of a licence or faculty from the consistory court of the diocese in which the churchyard is situate is first obtained.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Corporation that he is such personal representative or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese for the time being in the case of the removal of remains referred to in subsection (1) of this section from a Church of England burial ground or by a county court in all other cases and the said registrar or county court (as the case may be) shall have power to make an order specifying who shall remove the remains and any tombstone relating thereto.

(5) The expense of such removal and reinterment (not exceeding in respect of remains removed from any one grave and any tombstone relating thereto the sum of fifty pounds) shall be defrayed by the Corporation such sum to be apportioned if necessary equally according to the number of deceased persons whose remains have been removed from the grave.

(6) If—

- (a) within the said period of two months no notice as aforesaid shall have been given to the Corporation in respect of the remains in any grave; or
- (b) within two months after such notice as aforesaid has been given no application has been made under subsection (4) of this section and the person giving the notice under that subsection fails to remove the remains;
- (c) within two months after any order is made under subsection (4) of this section the person specified in the order fails to remove the remains;



PART VI  
—cont.

the Corporation may remove the remains of the deceased person and cause them to be reinterred in such burial ground or cemetery in which burials may legally take place as the Corporation think suitable for the purpose subject in the case of remains referred to in subsection (1) of this section removed from a Church of England burial ground to the previous authority of a licence or faculty from the consistory court of the diocese.

(7) Any jurisdiction or power conferred on a county court by this section may be exercised by the registrar of the court.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer.

## PART VII

## CULTURAL ACTIVITIES

Power to  
provide folk  
museum.

49.—(1) The Corporation may lay out as a folk museum any land occupied by them and in respect of any such folk museum may subject to the following provisions of this section exercise the like powers as in respect of a museum provided under the Public Libraries Act 1892.

(2) The Corporation may provide in the folk museum specimens of buildings and chattels of all kinds whether originals or reproductions of originals which in the opinion of the Corporation suitably represent those used by the people of England in former times.

(3) For the purpose of providing buildings in the folk museum the Corporation may by agreement acquire the materials of any building and demolish and re-erect the same in the folk museum.

(4) The Corporation may charge for admission to any folk museum provided under this Act.

Further  
powers as  
to libraries.

50.—(1) Notwithstanding anything contained in the Public Libraries Acts 1892 to 1919 the powers of the Corporation under those Acts in relation to any library art gallery or museum provided by them under those Acts shall include—

(a) the power to provide and lend or to permit the use of gramophone records pictures maps deeds rolls charts plans etchings films film strips lantern slides prints engravings and photographs;

(b) the power to charge such reasonable sum as the Corporation may prescribe for the reservation of an article;

- (c) the power to prescribe a period not being less than seven days within which any article borrowed from such library art gallery or museum must be returned thereto;
- (d) the power to recover from any person who fails within such prescribed period to return to such library art gallery or museum any article so borrowed such reasonable sum as the Corporation may prescribe in respect of each week or portion of a week in which he so fails to return such article together with any expenses incurred by the Corporation in sending to such person notices in respect of such article;
- (e) the power to prohibit any such person from borrowing any other article from any library art gallery or museum provided by the Corporation under those Acts until such person has paid any such sum as is due to the Corporation under paragraph (c) of this subsection;
- (f) the power to prescribe different periods and charges for the purposes of this section in relation to different articles or kinds of articles:

Provided that the sums prescribed by the Corporation for the purposes of paragraph (d) of this subsection shall not exceed sixpence or such greater sum as may be approved from time to time by the Minister of Education.

(2) In this section the expression “article” means a book newspaper magazine pamphlet map deed roll chart plan engraving etching print gramophone record picture film film strip lantern slide or photograph.

51.—(1) The Corporation may sell exchange or give or otherwise dispose of any specimen work of art or book vested in them which in the opinion of the Corporation is not required for exhibition or use in any museum art gallery library or other building of the Corporation. Disposal of unsuitable specimens and works of art.

(2) The Corporation may make arrangements by way of sale exchange or gift with any person being the owner of any museum art gallery or library for the transfer to that person of any specimen work of art or book vested in the Corporation which in the opinion of the Corporation is more suitable for exhibition or use in the museum art gallery or library of that person than in the museum art gallery or library of the Corporation.

(3) Where any object has become vested in the Corporation by virtue of a gift or bequest the powers conferred by this section shall not be exercisable as respects that object—

- (a) during the lifetime of the donor of the object without his consent; or



PART VII  
—cont.

(b) during a period of thirty-five years commencing on the date on which the object so became vested in any manner inconsistent with any condition attached to the gift or bequest.

(4) Any moneys received by the Corporation in the exercise of the powers of this section shall be applied by them in the purchase of specimens works of art or books.

Acquisition  
of works  
of art  
produced  
to order.

52. The Corporation may enter into and carry into effect agreements or arrangements for the production to their order of any picture or sculpture or other work of art and for the purchase thereof by the Corporation when completed.

## PART VIII

## PREMISES USED FOR SALES BY AUCTION

Definitions  
for this  
Part of Act.

53.—(1) In this Part of this Act—

the expression “premises” includes land;

the expression “prescribed articles” means any plate plated articles linen china glass books pictures prints furniture jewellery articles of household or personal use or ornament or any musical or scientific instruments or apparatus; and

the expression “sale by auction” includes any public sale at which a salesman invites an assembly of persons or any of them to acquire prescribed articles by competitive bidding.

(2) This Part of this Act applies to any sale by auction on any premises in the borough of any prescribed article whether or not in combination with the sale by auction of any other articles or things.

Registration  
of premises  
used for sales  
by auction.

54.—(1) As from the appointed day no premises in the borough shall be used for the conduct of any sale by auction to which this Part of this Act applies unless they are registered under this section for that purpose by the Corporation.

(2) Subject to the following provisions of this section the Corporation shall on the application of the occupier of or of a person proposing to occupy any premises register those premises under this section and shall issue to the applicant a certificate of registration.

(3) If—

(a) it appears to the Corporation—

(i) that any premises for the registration of which application has been made under this section or which are registered under this section are unsuitable for use for the purpose of conducting sales by auction; or

(ii) that any such premises have been used for the purpose of conducting otherwise than in good faith any sale by auction;

(b) the applicant for registration or the occupier for the time being of any such premises has been convicted of any offence involving fraud or dishonesty;

the Corporation shall if they propose to take the matter into consideration serve on the applicant or occupier (as the case may be) a notice stating the place and time not being less than seven days from the date of the service of the notice at which they propose to do so and informing him that he may attend before a committee of the council with any witnesses whom he desires to call at the place and time mentioned to show cause why the Corporation should not for reasons specified in the notice refuse the application or (as the case may be) cancel the registration of the premises.

(4) If a person on whom notice is served under the last preceding subsection fails to show cause to the satisfaction of the Corporation they may refuse the application or as the case may be cancel the registration of the premises and shall forthwith give notice to him of their decision in the matter and shall if so required by him within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it was based.

(5) A person aggrieved by a decision of the Corporation under this section to refuse to register any premises or to cancel a registration of any premises may appeal to a magistrates' court.

(6) The occupier of any premises registered under this section shall keep a copy of his certificate of registration displayed in the said premises and if he fails to do so he shall be liable to a fine not exceeding twenty shillings and to a daily fine not exceeding ten shillings.

(7) (a) In the event of the occupier of premises registered under this section ceasing to occupy the premises otherwise than



PART VIII  
—cont.

by reason of his death he shall within seven days from the date of his so ceasing give to the Corporation notice thereof.

(b) If a person required to give notice under this subsection fails to do so he shall be liable to a fine not exceeding five pounds.

(8) In the event of the occupier of premises registered under this section dying or ceasing to occupy the premises the registration of the premises then in force shall (unless previously cancelled under this section) continue in force for a period of three months from the date of death or cesser of occupation but shall upon the expiration of that period cease to have effect.

(9) Any person who conducts or assists in conducting a sale by auction to which this Part of this Act applies on any premises in the borough which are not registered under this section and any person who knowingly permits any such premises to be used for the purpose of conducting a sale by auction shall be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

## Exemptions.

**55.** Notwithstanding anything in the last preceding section sales by auction to which this Part of this Act applies of the under-mentioned classes may be conducted on premises which are not registered under that section:—

- (1) sales at intervals of not less than six months of property so long as no substantial part of the property was brought on to the premises for the purposes of the sale;
- (2) sales for the purpose of assisting the funds of any voluntary organisation if the whole or substantially the whole of the proceeds of sale are devoted to the funds of the organisation.

Offences by  
bodies  
corporate.

**56.** Where an offence punishable under this Part of this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance or be attributable to any neglect on the part of any director manager secretary or other similar officer of the body corporate or any person purporting to act in such capacity he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

As to  
section 287  
of Act of  
1936.

**57.** For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this Part of this Act shall be provisions which it is the duty of the Corporation to enforce.

PART IX  
FINANCE

58.—(1) The Corporation may borrow—

Power to  
borrow.

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority such sums as may be necessary for the payment of the costs charges and expenses of this Act;

and subject to the provisions of this section Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the preceding subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

59. Section 173 (Art fund) of the Southend-on-Sea Corporation Act 1947 shall have effect as if in the proviso to subsection (1) for the words "the sum of ten thousand pounds" wherever those words occur there were substituted the words "the sum of twenty-five thousand pounds".

Art fund.

60.—(1) The Corporation may pay to any of their officers who acts in any of the following capacities:—

Officers of  
Corporation  
acting as  
receivers etc.

- (a) as the receiver appointed by an order made under Part VIII of the Mental Health Act 1959;
- (b) as the administrator of the estate of a deceased person acting by virtue of a grant made to him as the nominee of the Corporation;
- (c) as a surety to a bond required by law from an officer acting in accordance with paragraph (a) of this subsection;

the amount of any sum forfeited by him to the Crown or the Principal Probate Registrar or the amount of any payment which he is liable to make by reason of his acting in the course of his duties as an officer of the Corporation in any such capacity as aforesaid.

(2) The Corporation may pay the amount of any premiums upon an insurance policy indemnifying an officer acting in any of the capacities mentioned in subsection (1) of this section against any act neglect or default whether his own or that of any other person occurring in the course of the receivership or administration.



PART IX  
—cont.

Power to  
charge in  
respect of  
establishment  
expenses.

61. Whenever under any enactment (other than the Act of 1936 or any Act which incorporates that Act) the Corporation on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Corporation may include in and recover as part of such cost such additional sum not exceeding five per centum of the cost of the works as they think fit in respect of their establishment charges.

As to proof  
of continued  
existence of  
pensioners.

62. Notwithstanding anything in any other enactment the Corporation shall not be required to make any payment by way of superannuation allowance pension compensation or other such payment under any statutory authority to or for the benefit of any person unless satisfactory proof is given to the Corporation in such manner and at such times as they may from time to time require of the continued existence of such person.

Power to  
borrow etc.  
for recon-  
struction of  
corporate  
land.

63. The layout and development of any corporate land (as defined by section 305 of the Act of 1933) for the time being belonging to the Corporation and the alteration enlargement improvement extension reconstruction or rebuilding of any building thereon shall be purposes for which the Corporation may borrow or may expend money out of the general rate fund.

Modification  
of mortgages  
by endorse-  
ment under  
hand.

64. Notwithstanding anything in any enactment or in any rule of law or otherwise to the contrary where it is agreed between the Corporation and a person at any time entitled to any mortgage granted by the Corporation to extend the time for the repayment of the principal moneys secured by such mortgage or to alter the rate of interest payable by the Corporation on the principal moneys so secured and not repaid or both to extend such time and to alter such rate of interest effect may be given thereto by an endorsement in writing under the hands of such person (or in the case of a corporate body by the duly authorised representative of that body) and of the town clerk or his duly authorised representative endorsed on the deed by which such mortgage was originally granted and the provisions of any such endorsement shall be deemed to be incorporated in the said deed and shall as from the date specified in such endorsement operate and take effect accordingly.

Service of  
demand notes.

65. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with any undertaking department or service of the Corporation.

Expenses of  
certain  
ceremonies etc.

66. Section 58 (Subscriptions to local government associations and other expenses) of the Southend-on-Sea Corporation Act 1926 as amended by section 180 (Payment of certain expenses)

of the Southend-on-Sea Corporation Act 1947 shall have effect as if at the end of that section there were added the following paragraphs and subsection:—

PART IX  
—cont.

- “(e) reasonable expenses for or in connection with the arrangement and conduct of ceremonies relative to or arising out of any statutory functions of the Corporation;
- (f) reasonable expenses for or in connection with refreshments for members of the council and representatives of local authorities and other bodies or for other persons attending conferences or meetings convened by the council or held at the town hall or civic centre or otherwise under the auspices of the Corporation;
- (g) reasonable expenses for or in connection with the presentation of the freedom of the borough to persons whom the council may resolve to admit as honorary freemen.

(2) The Local Authorities (Expenses) Act 1956 shall have effect in its application to the Corporation as if the expression ‘members of the council’ in that Act included members of committees or of sub-committees of the council who are not themselves members of the council.”

67. The Corporation may make reasonable payments for or in connection with the provision of refreshments and comforts for persons (other than officers or servants of the Corporation or officers of the police) who are or have been engaged in preventing the spread of fire or in assisting the fire brigade or otherwise in the preservation of life or property in case of emergency.

Refreshments  
etc. for  
persons giving  
assistance in  
case of  
emergency.

68.—(1) In its application to the Corporation subsection (3) of section 21 of the Local Government Superannuation Act 1937 shall have effect as if for the obligation to invest as mentioned in that subsection moneys forming part of but not for the time being required to meet payments to be made out of the superannuation fund maintained by the Corporation under that Act there were substituted an obligation to invest such moneys as follows (namely):—

Investment  
of super-  
annuation  
fund.

- (a) in or upon any investments authorised by section 1 of the Trustee Act 1925 but without the limitations imposed by the proviso in subsection (1) of section 2 of the said Act or in or upon any other investments for the time being authorised by law for the investment of trust funds; or
- (b) in or upon any of the stocks funds or securities of any dominion commonwealth union dependency or colony forming part of the British Commonwealth of Nations



PART IX  
—cont.

- or any province or state having a separate local legislature and forming part of any such dominion commonwealth union dependency or colony; or
- (c) in or upon any of the stocks bonds mortgages or securities of any municipality or county or district council or local or public authority or board in the United Kingdom or in any such dominion commonwealth union dependency colony province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or of the legislature concerned to issue the same; or
  - (d) in or upon any stocks shares bonds mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the United Kingdom Government or by the government of any such dominion commonwealth union dependency colony province or state as aforesaid; or
  - (e) in or upon the bonds debentures debenture stock mortgages obligations or securities or the guaranteed or preference or ordinary stock or shares or ordinary preferred or deferred or other stock or shares of any company incorporated or registered in the United Kingdom being stock or shares which are at the time of making the investment quoted on any recognised stock exchange; or
  - (f) in the purchase of freehold ground rents or freehold or leasehold land messuages tenements and hereditaments within the United Kingdom provided that as regards leaseholds the term thereof has at the time of making the investment at least sixty years to run; or
  - (g) upon the security of freehold property freehold ground rents land charges or rentcharges by way of first mortgage up to the limit of two-thirds of the value thereof;

with power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that the investment of such moneys as aforesaid in any investment of the nature specified in paragraph (e) of this subsection shall be subject to the following qualifications—

- (i) no investment shall be made in any company which has not paid a dividend of at least five per centum on the ordinary stock or shares of the company for each of the four years immediately preceding the date of investment or if the company has been incorporated or has been trading for less than four years before that date unless—

- (A) the company has paid such dividend for each of the years since incorporation or commencement of trading as the case may be; or

(B) in the case of a company which has not been incorporated or trading for at least one year before the date of investment but which has been formed by the amalgamation of other companies each of such other companies has paid a dividend of at least five per centum on its ordinary stock or shares for each of the four years immediately preceding the date of the amalgamation;

PART IX  
—cont.

(ii) no investment shall be made at any time when the value of all the investments made under the said paragraph (e) which form part of the superannuation fund equals or exceeds one-half of the total value of the assets of that fund;

(iii) no investment shall be made in securities transferable by delivery.

(2) For the purposes of subsection (1) of this section the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(3) In this section the expression “ recognised stock exchange ” means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act 1939.

## PART X

### MISCELLANEOUS

69. Section 9 (Power to develop certain lands) of the Southend-on-Sea Corporation Act 1947 shall have effect as if after the word of land. “ may ” (where that word first occurs) there were inserted the words “ with the consent of the Minister ” and as if for the words “ any lands within the borough acquired by them with the consent of the Minister before the passing of this Act for industrial development purposes ” there were substituted the words “ any land acquired by them under section 59 (Further powers for acquisition of lands) of the Southend-on-Sea Corporation Act 1926 and any other land for the time being belonging to them and not required for the purpose for which it was acquired ”.

70. Compensation recoverable by the Corporation for damage caused by negligence to any lamp lamp-post notice board fence rail or post or other apparatus or equipment provided by them in a street or public place shall if the amount thereof does not exceed twenty pounds be recoverable summarily as a civil debt.

Summary  
recovery of  
damages for  
negligence.



PART X  
—cont.Disposal of  
lost and  
uncollected  
property.

71.—(1) Where any lost or uncollected property is contained in a package bag or other receptacle the Corporation may cause such receptacle to be opened and the contents examined if they deem it necessary to do so for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(2) If any lost or uncollected property within three months of coming into the custody of the Corporation be not proved to the satisfaction of the Corporation to belong to any claimant it shall thereupon vest in the Corporation.

(3) Where any lost property becomes vested in the Corporation in pursuance of this section the Corporation may if they think fit deliver to the person whether an employee of the Corporation or not who placed the lost property in the custody of the Corporation the whole or any part of such property or of the estimated value thereof in cash.

(4) This section shall in the case of uncollected property placed in the custody of the Corporation on express terms inconsistent with the rights of the Corporation under this section have effect subject to those terms.

(5) In this section—

the expression “lost property” means any property coming into the custody of the Corporation after being left on or in any land or buildings occupied by the Corporation to which the public have access or in any trolley vehicle or light railway carriage of the Corporation; and

the expression “uncollected property” means any property deposited in any cloakroom or parcels store provided by the Corporation for the use of the public in which there is exhibited a notice containing a statement to the effect of subsections (1) and (2) of this section.

Restrictions  
on use of  
loudspeakers  
in streets.

72.—(1) No person shall for the purpose of advertising any entertainment trade or business or any part of a trade or business operate or cause or suffer to be operated any loudspeaker when such loudspeaker is in any street in the borough:

Provided that this subsection shall not apply to the operation of any loudspeaker on a vehicle constructed or adapted for use for the conveyance of any perishable commodity for human consumption (including ice-cream) where—

(a) the loudspeaker is used in conjunction with an electrically operated instrument to produce sounds (not being words); and

(b) the main purpose of operating the said loudspeaker is to notify members of the public that the driver or other

attendant of the vehicle is available to sell to members of the public the commodity conveyed by the vehicle; and

(c) the loudspeaker is not operated so as to be a nuisance. For the purposes of this proviso "ice-cream" includes any similar commodity and the commodity known as "water-ice".

(2) No person shall between the hours of nine in the afternoon and eight in the forenoon operate or cause or suffer to be operated any loudspeaker for any purpose when such loudspeaker is in any street in the borough:

Provided that this subsection shall not apply to a loudspeaker forming part of a wireless receiving set on or inside a motor vehicle so long as such loudspeaker is only used for the private purposes of the occupants of the said vehicle or for communication with them in connection with their trade or business and is not used so as to be an annoyance or nuisance to persons in a street.

(3) Any person who contravenes any of the provisions of this section shall be liable to a fine not exceeding five pounds.

(4) This section shall not apply to—

(a) the use of a loudspeaker by the Corporation or the police or the fire brigade in the execution of their duty or in case of emergency;

(b) the use of a loudspeaker by the commission for the purpose of announcements to their passengers or staff at any station or depot of the commission or by any persons operating public service vehicles for the purpose of announcements to their passengers whilst in any of their vehicles or at any of their stations or depots not forming part of a public highway or for communications between their staff;

(c) the use of a loudspeaker by statutory undertakers for the purpose of announcements in case of emergency to their customers or to the public generally.

(5) In this section the expression "loudspeaker" includes an amplifier or similar instrument.

73.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall on any highway or in any open space to which the public have access within the borough—

Damage to plants trees etc. on highways and in open spaces.

(a) cut any turf; or

(b) pluck any bud blossom flower fruit or leaf of any tree shrub or plant or remove cut or displace any plant if the tree shrub or plant has been planted or maintained by the person having control of the highway or open



PART X  
—cont.

space for the purpose of improving the amenities thereof and a notice stating the effect of this paragraph is conspicuously placed within reasonable proximity of the tree shrub or plant.

(2) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding forty shillings and to the payment of such further amount as appears to the court reasonable compensation for any damage so committed which last-mentioned amount shall be paid to the person having control of the highway or open space.

(3) Nothing in this section shall apply to any open space vested in or under the control of the Corporation or the National Trust for Places of Historic Interest or Natural Beauty.

Commemora-  
tive plaques.

74. The Corporation may provide and on a conspicuous external part of any house building or place in the borough cause to be put up with the consent of the owner of such house building or place commemorative plaques indicating events of public interest in connection with such house building or place or the site thereof and may thereafter with the like consent maintain any such plaque or any plaque put up by any other person or body.

Power to  
publish  
bulletins etc.

75. In connection with their powers under the Public Libraries Acts 1892 to 1919 the Corporation may publish and sell or dispose of bulletins journals periodicals and leaflets and documents of historical artistic or literary interest having a local connection:

Provided that nothing in this section shall be deemed to authorise the Corporation to do any act or thing in relation to any work or other subject-matter in or in relation to which copyright may subsist except with the consent of the person in whom the sole right to do or authorise the doing of that act or thing in relation to that work or subject-matter is for the time being vested under the law relating to copyright.

Welfare of  
aged persons  
etc.

76.—(1) The Corporation may make arrangements for—

- (a) providing aged persons and persons to whom section 29 of the National Assistance Act 1948 applies with meals;
- (b) providing aged persons with other domiciliary services in their homes;
- (c) providing aged persons with recreational facilities in their own homes or elsewhere.

(2) The Corporation may recover from persons availing themselves of any service provided under this section such charges (if any) as having regard to the cost of the service the Corporation may determine whether generally or in the circumstances of any particular case.

(3) This section shall apply to such aged persons and such persons to whom the said section 29 applies as are resident in the borough.

PART X  
—cont.

77.—(1) Any person who for the purpose of obtaining for himself or for any other person any of the benefits or advantages hereinafter mentioned—

False  
statements  
to obtain  
rent rebate  
etc.

- (a) knowingly makes to the Corporation or to any of their employees a false statement or false representation relating to his or that other person's need for the benefit or advantage or ability to pay a rent or make any other payment; or
- (b) produces or furnishes or knowingly allows to be produced or furnished to the Corporation or to any of their employees any document or information relating to the matters aforesaid which he knows to be false in a material particular;

shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

(2) The benefits or advantages hereinbefore referred to are—

- (a) the occupation of any house belonging to the Corporation;
- (b) a rebate of the rent of any such house;
- (c) a reduction in the amount of any payment due to the Corporation by virtue of the following enactments or of regulations made thereunder or the remission of any such payment;—

- (i) the Children and Young Persons Act 1933;
- (ii) the Education Acts 1944 to 1953;
- (iii) the Children Act 1948;

- (d) any award grant contribution or payment made by the Corporation under the Education Acts 1944 to 1953 or under or by virtue of any regulations made under those Acts;
- (e) any advance from the Corporation under the Small Dwellings Acquisition Acts 1899 to 1923 the Housing Act 1957 or the Housing (Financial Provisions) Act 1958;
- (f) any payment by the Corporation under section 63 of the Housing Act 1957;
- (g) a reduction in the amount of any rate or water charge or charge for the supply of heat due to the Corporation; or
- (h) any grant under the Housing Act 1949 the Housing (Financial Provisions) Act 1958 or the House Purchase and Housing Act 1959.



PART X  
—cont.

(3) If any person is convicted of an offence under this section the court may—

(a) terminate the tenancy of the house of which occupation had been obtained and order possession thereof to be given to the Corporation;

(b) order the person convicted to pay to the Corporation the amount of the rebate or reduction obtained by him;

(c) order the person convicted to make such payments as the court may think just to the Corporation in respect of—

(i) the reduction in the amount of any payment referred to in paragraph (c) of the last foregoing subsection or the remission thereof; or

(ii) any award grant contribution or payment referred to in paragraph (d) (f) or (h) of that subsection.

(4) For the purposes of this section the expression “house” includes any part of a house which is occupied or intended to be occupied as a separate dwelling.

Electronic or  
mechanical  
accounting  
equipment.

78. At any time after the Corporation have provided any electronic or mechanical accounting equipment for the purposes of all or any of their accounting work they may by agreement with any other person use or permit that other person to use the said equipment for the purposes of that other person and they may make such charges as may be agreed for the use of the said equipment.

Maintenance  
of buildings of  
architectural  
interest.

79.—(1) Where a building preservation order is in force as respects any building in the borough and it appears to the Corporation that reasonable steps are not being taken for properly preserving the building the Corporation may with the consent of the Minister make such contribution as they may think fit towards the cost of the maintenance of such building.

(2) In this section the expression “building preservation order” has the meaning assigned to it by section 29 of the Act of 1947.

Robes of  
office.

80. The Corporation may provide and maintain robes of office for the use of the mayor aldermen and councillors of the borough:

Provided that the robes provided by the Corporation under the powers of this section shall remain the property of the Corporation.

**81.—**(1) The Corporation may either alone or in co-operation with any association or body dealing with the promotion or control of any recreation organise or conduct any competition.

PART X  
—cont.  
Competitions  
etc.

(2) The Corporation may in connection with any such competition charge such entrance fees as they think fit to any entrants for any competition.

(3) The Corporation may expend on the provision of trophies and prizes to be awarded to participants in any such competition such sum as they may think fit not exceeding in any one year five hundred pounds.

(4) For the purposes of this section “competition” means any competition tournament or contest held in connection with any physical recreation sport or game and includes any display or exhibition given in connection therewith.

**82.** The Corporation may enter any vehicles belonging to them in carnival processions in the borough and in the neighbourhood of the borough and for that purpose may decorate or cause to be decorated any such vehicle: Corporation vehicles in processions.

Provided that the sums to be expended by the Corporation in any one financial year in exercise of the powers of this section shall not exceed two hundred and fifty pounds.

**83.—**(1) Where by virtue of any enactment in force in the borough any power or duty is required or authorised to be conferred or imposed by the Corporation on any officer any resolution of the council or a committee thereof under any such enactment conferring or imposing the power or duty may describe the officer by his name or by the designation of the office held by him. Authorities to officers.

(2) Where any such resolution whether passed before or after the passing of this Act describes an officer by the designation of the office held by him the resolution shall unless the contrary intention appears confer the power or impose the duty (as the case may be) on the holder or holders for the time being of the office.

**84.** Notwithstanding anything contained in paragraph 3 of Part V of the Third Schedule to the Act of 1933 or in any other enactment or rule of law to the contrary the minutes of the proceedings of meetings of the council or of any committee thereof may be recorded on loose leaves consecutively numbered the minutes of the proceedings of any meeting being signed and each leaf comprising those minutes being initialled by the person presiding at that meeting or at the next ensuing meeting of the council or committee and any minutes purporting to be so signed shall be received in evidence without further proof. Loose leaf minute books.



PART X  
—cont.Authentica-  
tion of  
documents  
and service  
of notices.

85.—(1) Section 284 of the Act of 1936 (which relates to the authentication of documents) shall apply to any notice or other document which the Corporation are required or authorised to give make or serve by or under this Act or by or under any enactment in force immediately before the commencement of this Act.

(2) Section 285 of the Act of 1936 (which relates to the service of notices) shall apply to any notice or other document required or authorised to be given to or served on any person by or under this Act or by or under any enactment in force immediately before the commencement of this Act so far as that enactment relates to the Corporation.

(3) The said section 284 or as the case may be the said section 285 shall not apply in any case for which provision is made by or under this Act or any other enactment.

## PART XI

## GENERAL

Confirming  
authority for  
byelaws.

86. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister except that in the case of byelaws made under section 41 (Further powers to make byelaws as to boats) and section 44 (Boating pools) the confirming authority shall be the Secretary of State.

Local  
inquiries.

87.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section the expression “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

The appointed  
day.

88.—(1) For the purposes of this Act the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the date fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the registration of a person carrying on any business or of premises used for any purpose it shall be lawful for any person who—

(a) immediately before that day was carrying on that business or using any premises for that purpose; and

(b) had before that day duly applied for the registration required by that provision;

to continue to carry on that business or to use those premises for that purpose until he is informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (2) of section 90 (Appeals) of this Act.

89. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act except the following sections thereof (namely):—

Section 72 (Restrictions on use of loudspeakers in streets);

Section 73 (Damage to plants trees etc. on highways and in open spaces);

by any person other than a party aggrieved or the Corporation.

90.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.



PART XI  
—cont.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use premises for any purpose for which they were lawfully used up to that time;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business and use those premises for that purpose.

## Repeal.

91. The following enactments are hereby repealed:—

The Southend-on-Sea Corporation Act 1895—

Section 18 (Power to prohibit cellars in districts liable to floods);

Section 21 (Dangerous structures and projections):

The Southend-on-Sea Corporation Act 1930—

Section 32 (Lost property):

The Southend-on-Sea Corporation Act 1947—

Section 96 (Fencing of forecourts);

Section 115 (As to neglected sites);

Section 137 (Sanitary conveniences for workmen);

Section 197 (As to maintenance of cemeteries &c.).

Protection of  
members and  
officers of  
Corporation  
from personal  
liability.

92. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act.

Application  
of general  
provisions of  
Act of 1936.

93.—(1) The sections of the Act of 1936 mentioned in Part I of the Second Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to the following Parts of this Act (that is to say):—

- Part II (Streets);
- Part III (Sanitation and buildings);
- Part IV (Nuisances);
- Part V (Public order and public safety).

(3) The sections of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to the Parts of this Act mentioned in subsection (2) of this section and also to section 76 (Welfare of aged persons etc.) of this Act.

(4) The section of the Act of 1936 mentioned in Part IV of the said schedule shall have effect as if references therein to that Act included a reference to the said Parts II and III and Part VIII (Premises used for sales by auction) of this Act and also to the following sections of this Act (namely):—

- Section 28 (Noise or vibration nuisance);
- Section 30 (Firemen's switches for luminous tube signs);
- Section 31 (Parts of buildings used for storage of inflammable substances);
- Section 32 (Disused petrol tanks);
- Section 33 (Precautions against fire in certain buildings);
- Section 34 (Preventing fire in public or other buildings);
- Section 35 (Underground car parks);
- Section 36 (Further provision as to underground car parks);  
and
- Section 39 (Removal of vehicles of unknown ownership).

94. For the protection of the undertakers the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers apply and have effect:—

For  
protection  
of certain  
statutory  
undertakers.

- (1) In this section unless the subject or context otherwise requires—

“ apparatus ” means—

(a) in relation to the Central Electricity Generating Board and the Eastern Electricity Board electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by the Central Electricity Generating Board or the Eastern Electricity Board (as the case may be);

(b) in relation to the North Thames Gas Board mains pipes or other apparatus belonging to or maintained by that board;



PART XI  
—cont.

(c) in relation to the Southend Waterworks Company mains pipes or other apparatus belonging to or maintained by that company;

and includes any works constructed for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under over across along or upon;

“ operational land ” has the meaning given to that expression by the Act of 1947;

“ position ” includes depth;

“ the undertakers ” means the Central Electricity Generating Board the Eastern Electricity Board the North Thames Gas Board or the Southend Waterworks Company as the case may require:

- (2) Nothing in section 5 (Trees grass verges and gardens) or in section 6 (Verges etc. of housing estates) of this Act shall affect the rights of the undertakers with respect to any apparatus (including the placing of apparatus) in any grass verge garden or space:

Provided that in exercising such rights the undertakers shall not cause or permit except in case of necessity horses or vehicles to enter upon any such verge or space which is maintained in an ornamental condition or mown or any garden:

- (3) Nothing in the following sections of this Act shall relieve the Corporation or any person acting by the requirement of the Corporation from liability for damage caused by them or him to any apparatus in the exercise of the powers of the said sections and the Corporation or such person shall so exercise those powers as not to render unreasonably inconvenient the access to any apparatus:—

Section 5 (Trees grass verges and gardens);

Section 7 (Guard rails in private streets);

Section 10 (Fencing of forecourts):

- (4) (a) Notwithstanding the stopping up temporarily of any promenade or part of a promenade under the powers of section 15 (Power to close promenades for certain purposes) of this Act the undertakers their engineers or workmen and others in their employ shall in case of emergency have such right of access to any apparatus situate in any such promenade or part thereof as they had immediately before such stopping up and shall be at liberty to execute emergency works in upon or under such promenade or part thereof:

Provided that such right of access as aforesaid shall so far as possible be exercised only when the promenade or part thereof is not in active use for any of the purposes mentioned in the said section and any emergency works carried out shall be completed as expeditiously as possible so as to cause the minimum interference with such use for that purpose;

(b) In this paragraph "emergency works" means works whose execution at the time when they are executed is requisite in order to put an end to or prevent the arising of circumstances then existing or imminent which are calculated to cause danger to persons or property or the interruption of a supply or service afforded by the undertakers:

(5) (a) Any difference which may arise between the Corporation and the undertakers under this section shall be determined by a single arbitrator to be appointed by agreement between the parties or in default of agreement by the President of the Institution of Civil Engineers on the application of either party after giving notice in writing to the other party;

(b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

95. No power conferred upon the Corporation by the following sections of this Act (namely):— Saving for trusts etc.

Section 43 (Parking places in parks etc.);

Section 44 (Boating pools);

Section 45 (Closing of public parks);

Section 47 (Powers as to disused part of burial ground); and

Section 69 (Development of land);

shall be exercised in such a manner—

(a) as to be at variance with any trust subject to which any land or building is held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or



PART XI  
—cont.

(b) as to contravene any covenant or condition subject to which a gift or lease of any land or building has been accepted by or granted to the Corporation without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

Saving for  
town and  
country  
planning.

96. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

97. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

## SCHEDULES

### FIRST SCHEDULE

#### CONDITIONS AS TO CONSTRUCTION OF DUAL-PURPOSE VEHICLES

1. The vehicle must be permanently fitted with a rigid roof with or without a sliding panel.

2. The area of the vehicle to the rear of the driver's seat must—

(a) be permanently fitted with at least one row of transverse seats (fixed or folding) for two or more passengers and those seats must be properly sprung or cushioned and provided with upholstered backrests attached either to the seats or to a side or the floor of the vehicle; and

(b) be lit on each side and at the rear by a window or windows of glass or other transparent material having an area or aggregate area of not less than two square feet on each side and not less than one hundred and twenty square inches at the rear.

3. The distance between the rearmost part of the steering wheel and the backrests of the row of transverse seats satisfying the requirements specified in paragraph 1 of this schedule (or if there is more than one such row of seats the distance between the rearmost part of the steering wheel and the backrests of the rearmost such row) must when the seats are ready for use be not less than one-third of the distance between the rearmost part of the steering wheel and the rearmost part of the floor of the vehicle.

### SECOND SCHEDULE

#### SECTIONS OF ACT OF 1936 APPLIED

##### PART I

##### SECTIONS APPLIED GENERALLY

| Section | Marginal note                                                     |
|---------|-------------------------------------------------------------------|
| 271     | Interpretation of "provide".                                      |
| 283     | Notices to be in writing; forms of notices &c.                    |
| 286     | Proof of resolutions &c.                                          |
| 288     | Penalty for obstructing execution of Act.                         |
| 296     | Summary proceedings for offences.                                 |
| 297     | Continuing offences and penalties.                                |
| 304     | Judges and justices not to be disqualified by liability to rates. |
| 328     | Powers of Act to be cumulative.                                   |



2ND SCH.  
—cont.

## PART II

## SECTIONS APPLIED TO PARTS II III IV AND V OF THIS ACT

| Section | Marginal note                                                                                                   |
|---------|-----------------------------------------------------------------------------------------------------------------|
| 275     | Power of local authority to execute certain work on behalf of owners or occupiers.                              |
| 276     | Power of local authority to sell certain materials.                                                             |
| 277     | Power of councils to require information as to ownership of premises.                                           |
| 289     | Power to require occupier to permit works to be executed by owner.                                              |
| 291     | Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments. |
| 292     | Power to make a charge in respect of establishment expenses.                                                    |
| 294     | Limitation of liability of certain owners.                                                                      |
| 295     | Power of local authority to grant charging orders.                                                              |
| 329     | Saving for certain provisions of the Land Charges Act 1925.                                                     |

## PART III

## SECTIONS APPLIED TO PARTS II III IV AND V AND SECTION 76 OF THIS ACT

| Section | Marginal note                                  |
|---------|------------------------------------------------|
| 293     | Recovery of expenses &c.                       |
| 299     | Inclusion of several sums in one complaint &c. |

## PART IV

SECTION APPLIED TO PARTS II III AND VIII AND SECTIONS 28 30 TO 36  
AND 39 OF THIS ACT

| Section | Marginal note            |
|---------|--------------------------|
| 287     | Power to enter premises. |

*Table of Statutes referred to in this Act*

| Short title                              | Session and chapter  |
|------------------------------------------|----------------------|
| Theatres Act 1843 .. .. .                | 6 & 7 Vict. c. 68.   |
| Lands Clauses Consolidation Act 1845 ..  | 8 & 9 Vict. c. 18.   |
| Larceny Act 1861 .. .. .                 | 24 & 25 Vict. c. 96. |
| Public Health Act 1875 .. .. .           | 38 & 39 Vict. c. 55. |
| Telegraph Act 1878 .. .. .               | 41 & 42 Vict. c. 76. |
| Electric Lighting Act 1882 .. .. .       | 45 & 46 Vict. c. 56. |
| Public Health Acts Amendment Act 1890 .. | 53 & 54 Vict. c. 59. |

| Short title                                               | Session and chapter                  |
|-----------------------------------------------------------|--------------------------------------|
| Public Libraries Act 1892 .. .. .                         | 55 & 56 Vict. c. 53.                 |
| Southend-on-Sea Corporation Act 1895 ..                   | 58 & 59 Vict. c. clviii.             |
| Open Spaces Act 1906 .. .. .                              | 6 Edw. 7 c. 30.                      |
| Cinematograph Act 1909 .. .. .                            | 9 Edw. 7 c. 30.                      |
| Acquisition of Land (Assessment of Compensation) Act 1919 | 9 & 10 Geo. 5 c. 57.                 |
| Trustee Act 1925 .. .. .                                  | 15 Geo. 5 c. 12.                     |
| Land Charges Act 1925 .. .. .                             | 15 & 16 Geo. 5 c. 22.                |
| Roads Improvement Act 1925 .. .. .                        | 15 & 16 Geo. 5 c. 68.                |
| Public Health Act 1925 .. .. .                            | 15 & 16 Geo. 5 c. 71.                |
| Rating and Valuation Act 1925 .. .. .                     | 15 & 16 Geo. 5 c. 90.                |
| Law of Property (Amendment) Act 1926 ..                   | 16 & 17 Geo. 5 c. 11.                |
| Southend-on-Sea Corporation Act 1926 ..                   | 16 & 17 Geo. 5 c. civ.               |
| Petroleum (Consolidation) Act 1928 ..                     | 18 & 19 Geo. 5 c. 32.                |
| Southend-on-Sea Corporation Act 1930 ..                   | 20 & 21 Geo. 5 c. clxxxiii.          |
| Children and Young Persons Act 1933 ..                    | 23 Geo. 5 c. 12.                     |
| Local Government Act 1933 .. .. .                         | 23 & 24 Geo. 5 c. 51.                |
| Restriction of Ribbon Development Act 1935                | 25 & 26 Geo. 5 c. 47.                |
| Public Health Act 1936 .. .. .                            | 26 Geo. 5 & 1 Edw. 8 c. 51.          |
| Factories Act 1937 .. .. .                                | 1 Edw. 8 & 1 Geo. 6 c. 67.           |
| Local Government Superannuation Act 1937 ..               | 1 Edw. 8 & 1 Geo. 6 c. 68.           |
| Prevention of Fraud (Investments) Act 1939 ..             | 2 & 3 Geo. 6 c. 16.                  |
| Ministers of the Crown (Transfer of Functions) Act 1946   | 9 & 10 Geo. 6 c. 31.                 |
| Borrowing (Control and Guarantees) Act 1946               | 9 & 10 Geo. 6 c. 58.                 |
| Southend-on-Sea Corporation Act 1947 ..                   | 10 & 11 Geo. 6 c. xxxiii.            |
| Town and Country Planning Act 1947 ..                     | 10 & 11 Geo. 6 c. 51.                |
| Electricity Act 1947 .. .. .                              | 10 & 11 Geo. 6 c. 54.                |
| National Assistance Act 1948 .. .. .                      | 11 & 12 Geo. 6 c. 29.                |
| Children Act 1948 .. .. .                                 | 11 & 12 Geo. 6 c. 43.                |
| Lands Tribunal Act 1949 .. .. .                           | 12 & 13 Geo. 6 c. 42.                |
| Housing Act 1949 .. .. .                                  | 12 & 13 Geo. 6 c. 60.                |
| Civil Aviation Act 1949 .. .. .                           | 12 & 13 Geo. 6 c. 67.                |
| Magistrates' Courts Act 1952 .. .. .                      | 15 & 16 Geo. 6 & 1 Eliz. 2<br>c. 55. |
| Cinematograph Act 1952 .. .. .                            | 15 & 16 Geo. 6 & 1 Eliz. 2<br>c. 68. |
| Protection of Birds Act 1954 .. .. .                      | 2 & 3 Eliz. 2 c. 30.                 |
| Mines and Quarries Act 1954 .. .. .                       | 2 & 3 Eliz. 2 c. 70.                 |
| Local Authorities (Expenses) Act 1956 ..                  | 4 & 5 Eliz. 2 c. 36.                 |
| Housing Act 1957 .. .. .                                  | 5 & 6 Eliz. 2 c. 56.                 |
| Housing (Financial Provisions) Act 1958 ..                | 6 & 7 Eliz. 2 c. 42.                 |
| Highways Act 1959 .. .. .                                 | 7 & 8 Eliz. 2 c. 25.                 |
| House Purchase and Housing Act 1959 ..                    | 7 & 8 Eliz. 2 c. 33.                 |
| Mental Health Act 1959 .. .. .                            | 7 & 8 Eliz. 2 c. 72.                 |
| Road Traffic Act 1960 .. .. .                             | 8 & 9 Eliz. 2 c. 16.                 |



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